

South of Scotland Electricity Order Confirmation Act, 1956

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CHAPTER xciv

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to South of Scotland Electricity. [5th November 1956.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the South of Scotland Electricity Order Confirmation Act 1956.

SCHEDULE

SOUTH OF SCOTLAND ELECTRICITY

Provisional Order to consolidate the local enactments applying to the South of Scotland Electricity Board with such amendments as are required to facilitate consolidation and secure a uniform statutory code applicable throughout the South of Scotland District to confer further powers on the said Board and for other purposes.

WHEREAS the South of Scotland Electricity Board established under the Electricity Reorganisation (Scotland) Act 1954 (hereinafter referred to as "the Board") are responsible for the generation and distribution of electricity in the South of Scotland District (hereinafter referred to as "the district"):

And whereas the local enactments applying to the Board are numerous and many of their provisions have been superseded by subsequent legislation and ought to be repealed:

And whereas the provisions of the said local enactments apply only to parts of the district and it is expedient that some of them should be extended to the district as a whole:

And whereas it would be of advantage to the public and the Board alike if such of the provisions of the said enactments as it is deemed expedient to retain were consolidated with such amendments as are required to facilitate consolidation and secure a uniform statutory code applicable throughout the district:

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred on the Board and made as by this Order provided:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

- Short title. 1. This Order may be cited as the South of Scotland Electricity Order 1956.
- Commencement. 2. This Order shall come into operation on the date on which the Act confirming it is passed and that date is in this Order referred to as "the commencement of this Order".
- Extent. 3. Except so far as the Board may be authorised by or under any enactment to exercise outside the district the powers conferred on them by this Order the said powers shall be exercisable only within the district.
- Interpretation. 4. In this Order unless the context otherwise requires—
(1) The several words and expressions to which meanings are assigned by the principal Acts shall subject to the provisions of this Order have the same respective meanings:

9. The following provisions for the protection of the British Transport Commission (in this section referred to as "the commission") shall unless otherwise agreed in writing between the Board and the commission apply and have effect (that is to say):—

For protection
of British
Transport
Commission.

- (1) The Board shall maintain to the reasonable satisfaction of the commission that part of the Victoria Harbour culvert which is under or in the vicinity of the railway of the commission:
- (2) Before the Board carry out any works on any such part of the Victoria Harbour culvert they shall submit plans and specifications of the proposed works to the commission for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the commission may reasonably specify:

Provided that the commission shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary:

- (3) The Board shall make good any loss or damage which the commission may suffer in consequence of the existence or use of the Victoria Harbour culvert or the exercise by the Board of any of the powers conferred on them by this Part of this Order:
- (4) Any question or difference arising between the Board and the commission under this section shall be determined by arbitration in the manner hereinafter provided.

10. The following provisions for the protection of the trustees of the port and harbours of Greenock (in this section referred to as "the trustees") shall unless otherwise agreed in writing between the Board and the trustees apply and have effect (that is to say):—

For protection
of trustees
of port
and harbours
of Greenock.

- (1) Before the Board carry out any works on any part of the Victoria Harbour culvert which is on or under the property of the trustees they shall submit plans and specifications of the proposed works to the trustees for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the trustees may reasonably specify:

Provided that the trustees shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary:

- (2) If at any time the trustees consider it necessary for the development or alteration of their undertaking or for preventing danger to traffic at the port and harbours of Greenock (as defined in the Greenock Port and Harbours

Consolidation Act 1913) or to the works of the trustees that the position of the said culvert (or any altered or enlarged culvert) should be altered the Board shall at the request of the trustees and at the expense of the Board alter the position of the said culvert (or any altered or enlarged culvert) and shall reconstruct it in such position as the trustees may reasonably specify and the trustees shall afford the Board all such facilities as they may reasonably require for that purpose:

- (3) The Board shall not under the powers conferred on them by this Part of this Order take water from the harbours of Greenock except at such points and upon such terms and conditions as have been or may be agreed upon between the Board and the trustees:
- (4) The Board shall not under the powers conferred on them by this Part of this Order discharge or cause to be discharged into the Delling Burn or any other stream or watercourse flowing into the said port and harbours of Greenock any water at a temperature exceeding one hundred degrees Fahrenheit:
- (5) Any question or difference arising between the Board and the trustees under this section shall be determined by arbitration in the manner hereinafter provided.

PART IV

LANARKSHIRE HYDRO-ELECTRIC WORKS

Maintenance of
the Lanarkshire
hydro-electric
works.

11.—(1) The Board may continue to use and maintain the existing hydro-electric works at one time belonging to the former Lanarkshire Hydro-Electric Power Company and now vested in the Board including—

- (a) the two generating stations known respectively as—
 - (i) Bonnington power station; and
 - (ii) Stonebyres power station;

being the existing generating stations erected on the sites described respectively in paragraphs 1 and 2 of Part V of the First Schedule to this Order (which generating stations are in this Order referred to as "the Lanarkshire hydro-electric stations");

- (b) the works by means of which water is collected and stored for use at and is brought to and taken from the said generating stations;

- (c) the machinery and plant used for—

- (i) generating transforming and converting electricity at or transmitting electricity to and from the said generating stations; and

- (ii) operating the said works; and

- (d) the whole other lands buildings works machinery plant rights powers and privileges effeiring thereto ;

(all in this Order referred to as "the Lanarkshire hydro-electric works").

(2) Without prejudice to the generality of the foregoing provisions of this section the Board may continue to generate electricity on the generating station sites described in Part V of the First Schedule to this Order.

(3) Subject to the provisions of this Order the Board may renew alter add to or cease to use and remove the whole or any part of the Lanarkshire hydro-electric works :

Provided that any increase of or addition to the said works or any part thereof shall be executed by the Board only on land for the time being belonging to them or over which they have acquired the right to execute such works.

12.—(1) For the purpose of providing motive power for the generation of electricity at the Lanarkshire hydro-electric stations the Board may (by means of the works for the time being forming part of the Lanarkshire hydro-electric works) continue to take and raise the level of and use and divert the waters of the river Clyde. Taking of water from river Clyde.

(2) All water so taken shall be returned unpolluted and in a continuous undiminished and uninterrupted flow to the river Clyde at the existing points of return.

13.—(1) The Board may for the haulage and carriage of plant machinery materials and things required for or in connection with the Lanarkshire hydro-electric works use any road belonging to or maintainable by the Gourock Ropework Company Limited (in this section referred to as "the company"). Use of roads belonging to Gourock Ropework Co. Ltd.

(2) If in the exercise of the powers conferred on them by this section the Board damage—

(a) any such road ; or

(b) any water or other pipes or any sewers drains or other works or property of the company laid in or under or erected on or carried over any such road ;

they shall make good the damage done.

(3) Any question or difference arising between the Board and the company under this section shall be determined by arbitration in the manner hereinafter provided.

14. Nothing in this Order shall be deemed to prevent any authority authorised to supply water from— For protection of certain water authorities.

(a) exercising any statutory powers vested in them for the taking of water from the catchment area of the river Clyde above Bonnington Falls ; or

(b) applying for powers to augment their water supplies ;

or shall be deemed to prevent the Board from opposing any such application.

PART V

GALLOWAY HYDRO-ELECTRIC WORKS

Maintenance of
the Galloway
hydro-electric
works.

15.—(1) The Board may continue to use and maintain the existing hydro-electric works at one time belonging to the former Galloway Water Power Company and now vested in the Board including—

(a) the five generating stations known respectively as—

- (i) Tongland power station ;
- (ii) Glenlee power station ;
- (iii) Earlstoun power station ;
- (iv) Carsfad power station ; and
- (v) Kendoon power station ;

being the existing generating stations erected on the sites described respectively in paragraphs 1 2 3 4 and 5 of Part VI of the First Schedule to this Order (which generating stations are in this Order referred to as “the Galloway hydro-electric stations”);

(b) the works by means of which water is collected and stored for use at and is brought to and taken from the said generating stations including the following ten dams and seven reservoirs namely:—

<i>Dam</i>	<i>Reservoir</i>
(i) Tongland dam	(i) Tongland reservoir
(ii) Glenlochar barrage	(ii) Loch Ken reservoir
(iii) Clatteringshaws dam	(iii) Clatteringshaws reservoir
(iv) Earlstoun dam	(iv) Earlstoun reservoir
(v) Carsfad dam	(v) Carsfad reservoir
(vi) Deugh dam	(vi) Kendoon reservoir
(vii) Ken dam	
(viii) Blackwater Burn dam	
(ix) Loch Doon dam	(vii) Loch Doon reservoir
(x) Muck Burn dam	

(c) the machinery and plant used for—

(i) generating transforming and converting electricity at or transmitting electricity to and from the said generating stations ; and

(ii) operating the said works ; and

(d) the whole other lands buildings works machinery plant rights powers and privileges effeiring thereto ;

(all in this Order referred to as “the Galloway hydro-electric works”).

(2) Without prejudice to the generality of the foregoing provisions of this section the Board may continue to generate electricity on the generating station sites described in Part VI of the First Schedule to this Order.

(3) Subject to the provisions of this Order the Board may renew alter add to or cease to use and remove the whole or any part of the Galloway hydro-electric works:

Provided that any increase of or addition to the said works or any part thereof shall be executed by the Board only on land for the time being belonging to them or over which they have acquired the right to execute such works.

(4) Nothing in this section shall authorise the Board to—

- (a) add to the number of existing dams forming part of the Galloway hydro-electric works or increase the height of any such dam ; or
- (b) increase the size of or add to the number of the existing reservoirs forming part of the said works.

16. For the purpose of providing motive power for the generation of electricity at the Galloway hydro-electric stations the Board may (by means of the works for the time being forming part of the Galloway hydro-electric works)—

Taking of water
for the Galloway
hydro-electric
stations.

(1) take and divert and impound and use the waters of the following lochs rivers and streams namely:—

(a) *Lochs*—

Loch Doon ;
Loch Ken ;
Loch Grennoch ;

(b) *Rivers*—

River Dee ;
River Dee or Blackwater of Dee ;
River Ken ;
River Deugh ;

(c) *Streams*—

Craigshinnie Burn ;
Palnure Burn ;
Pullaugh Burn ;
Green Burn ;
Glenhead Burn ;
Mid Burn ;
Carrouch Burn ;
Blackwater Burn ;
Bow Burn ;
Cullendoch Burn ;
Lamford Burn ;
Meadowhead Burn ;
Fingland Lane ;
Carsphairn Lane.

and all streams waters springs and tributaries flowing into the said lochs rivers and streams and all such waters as may be intercepted by the said works ; and

(2) raise or lower or regulate the water or the level or flow of water in the said lochs rivers streams springs and tributaries or any of them.

Compensation
water for
river Doon.

17.—(1) The Board shall at a point at or near the western face of the loch Doon dam deliver into the river Doon—

- (a) not less than forty-five million gallons of water in any day other than between noon on any Saturday and noon on any Sunday when the quantity of water may be reduced to forty million gallons and so long as the total quantity of water taken daily by the town council of the burgh of Ayr from loch Finlas and loch Recawr or either of them under the powers contained in the Ayr Burgh Acts 1873 to 1927 does not exceed five and one-half million gallons;

Provided that if the total quantity of water so abstracted at any time from the said lochs exceeds five and one-half million gallons as aforesaid the said quantities of forty-five million gallons and forty million gallons shall be reduced by the amount of such excess but so as not to reduce the said discharge or delivery below thirty million gallons in any day other than between noon on any Saturday and noon on any Sunday when the quantity of water may be reduced to twenty-five million gallons;

- (b) if required by the River Doon Fishery Board by one week's notice in writing or such less notice as may be agreed in addition to any quantity so discharged as aforesaid a further quantity of water not exceeding eighty million gallons during any period of twenty-one days at such times and at such rates as may be required by the said fishery board.

(2) In this section the word "day" means a day of twenty-four hours reckoned from noon to noon.

Maintenance of
salmon passes.

18.—(1) For the purpose of facilitating the passage of salmon in the river Dee the Board shall (to the satisfaction of the Secretary of State) maintain—

- (a) the existing salmon passes at or near the Tongland Earlstoun and Carsfad dams respectively; and
(b) the existing pass for the descent of salmon fry at or near the Blackwater Burn dam being one of the three dams forming the Kendoon reservoir.

(2) The Board may with the approval of the Secretary of State modify or alter the said passes or substitute other passes therefor.

(3) The Board shall also provide and maintain all such hecks and other apparatus as may be required or approved by the Secretary of State for preventing fish from entering any part of the Galloway hydro-electric works or any river or stream which in the opinion of the Secretary of State is rendered dangerous to fish life by reason of the existence or operation of the said works.

(4) The Board or any district fishery board having jurisdiction in the area or in any part of the area affected by the Galloway hydro-electric works or any proprietor having right of salmon fishing in any loch river or stream which may be affected by the said works may make representations to the Secretary of State in regard to the carrying out of the provisions of this section.

19.—(1) The Board shall make compensation for any damage or injury which may be sustained by Her Majesty or Her tenants in respect of Her right of salmon fishing through the exercise by the Board of the powers conferred on them by this Part of this Order.

(2) Any question or difference arising under this section shall be determined by an arbiter to be agreed upon between the Board and the Commissioners of Crown Lands or (failing agreement) to be nominated by the Lord President of the Court of Session and the provisions of subsections (2) and (3) of the section of this Order entitled "Arbitration" shall apply to any such arbitration.

20. The following provisions for the protection of the most honourable Helen Ethel Marchioness of Ailsa shall unless otherwise agreed in writing between the Board and the said Marchioness apply and have effect (that is to say):—

For protection
of
Marchioness of
Ailsa.

The Board shall deliver from the Clatteringshaws reservoir into the existing channel of the river Blackwater of Dee such quantity of water as together with the natural flow for the time being in that part of the said river below the Clatteringshaws dam maintains a flow at or near Hensol House of not less than twelve million gallons in every twenty-four hours.

21. The following provisions for the protection of Lieutenant Colonel William Forbes of Callendar his successors in the estate of Earlstoun in the Stewartry and assignees (all of whom are in this section included in the expression "the owner") shall unless otherwise agreed in writing between the Board and the owner apply and have effect (that is to say):—

For protection
of Lieut. Colonel
William Forbes
of Callendar.

(1) If at any time the flood water in the Earlstoun reservoir rises to a level exceeding three feet above the sill of the dam forming the said reservoir the Board shall forthwith carry out such works as may be necessary to prevent any further increase in the height of the flood water above such level:

(2) Except in an emergency or for the purpose of executing necessary repairs the Board shall not draw down the top water level of the said reservoir below a level of eight feet from the sill of the said dam.

22. The following provisions for the protection of the British Transport Commission (in this section referred to as "the commission") shall unless otherwise agreed in writing between the Board and the commission apply and have effect (that is to say):—

For further
protection of
British
Transport
Commission.

(1) The Board shall use the Galloway hydro-electric works in such a way as not to damage the railway or other works or property of the commission (all in this section referred to as "the railway") and in particular the Board shall—

(a) so control the top water level of the Galloway reservoirs as to prevent—

(i) any greater volume of water being discharged from the reservoirs than was (before their construction) carried in time of flood by the rivers or streams leading from them; or

(ii) any increase in the incidence of flooding; and

(b) keep the sluices of the Glenlochar Barrage (erected across the river Dee to form the reservoir known as loch Ken) open to their fullest extent at all times when the top water level of that reservoir at the sluices exceeds a height of one hundred and fifty feet above ordnance datum:

(2) (a) The Board shall maintain the Galloway hydro-electric works in a reasonable state of repair and shall at the written request of the commission make good any part of the works which in the opinion of the commission has fallen into such disrepair as to cause risk of damage to the railway;

(b) If the Board fail to comply with any such request the commission may themselves carry out the necessary repairs and recover the cost of doing so from the Board:

(3) Before the Board (under the powers conferred on them by this Part of this Order) renew alter add to or cease to use or remove any part of the Galloway hydro-electric works they shall if the proposed works are—

(a) in on over or under land belonging to or occupied by the commission; or

(b) of such a nature that they may affect or be a source of danger to the railway;

submit plans and specifications of the proposed works to the commission for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the commission may reasonably specify:

Provided that the commission shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary:

(4) If by reason of the existence or use of the Galloway hydro-electric works or the failure of any part of these works to operate as it should or if in consequence of the exercise by the Board of the powers conferred on them by this Part of this Order—

(a) the railway is damaged; or

(b) its maintenance or operation is rendered more difficult or costly; or

(c) the traffic on the railway is interrupted; or

(d) the telegraphic telephonic or electric signalling apparatus of the commission is injuriously affected by induction or otherwise;

then (notwithstanding that the said works may have been approved by the commission or carried out under the superintendence of their engineer) the Board shall make good the damage done or compensate the commission for the loss they have suffered:

- (5) If the commission (under any powers available to them on 10th May 1929) widen alter or improve the railway or increase the railway accommodation and if by reason of the existence of the Galloway hydro-electric works the commission is put to additional expense in carrying out such works they shall be entitled to recover the amount thereof from the Board :
- (6) Any question or difference arising between the Board and the commission under this section shall be determined by arbitration in the manner hereinafter provided.

23. The following provisions for the protection of the county council of the Stewartry (in this section referred to as "the county council") shall unless otherwise agreed in writing between the Board and the county council apply and have effect (that is to say):—

For protection
of the county
council of the
Stewartry.

- (1) The Board shall so control the top water level of the Galloway reservoirs as to prevent—
- (a) any greater volume of water being discharged therefrom than was (before the construction of the reservoirs) carried in time of flood by any rivers or streams leading from them ; or
 - (b) any increase in the incidence of flooding :
- (2) If it appears to the county council at any time that the public safety is or is likely to be endangered by reason of the blocking by snow ice or otherwise of the open aqueducts forming part of the Galloway hydro-electric works the county council may require the Board to do everything practicable to remove or abate the danger and the Board shall (at their own expense) at once comply with the requirements of the county council :
- (3) The Board shall take precautions to prevent the waters in the lochs rivers and streams referred to in the section of this Order entitled "Taking of water for the Galloway hydro-electric stations" from being polluted by their operations and shall provide such works as are necessary to prevent such pollution and they shall be responsible for any damage arising from such pollution :
- (4) If by reason of the existence or use of the Galloway hydro-electric works or the failure of any part of these works to operate as it should or if in consequence of the exercise by the Board of the powers conferred on them by this Part of this Order—
- (a) any damage is done to any property belonging to the county council ; or
 - (b) the county council are put to any additional expense in inspecting maintaining reconstructing widening altering or improving any road or bridge belonging to them or under their jurisdiction ; or
 - (c) any claim for reparation is made against the county council by a third party ;

the Board shall make good the damage done to the property of the county council and reimburse the county council for the additional expense to which they have been put and relieve the county council of any claim by any third party :

- (5) Before the Board (under the powers conferred on them by this Part of this Order) renew alter add to or cease to use or remove any part of the Galloway hydro-electric works they shall (if the proposed works are in over or under property belonging to the county council) submit plans and specifications of the proposed works to the county council for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the county council may reasonably specify :

Provided that the county council shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary :

- (6) If the county council require a supply of water for domestic purposes or for the disposal of sewage or for any other public health purpose they may (if they are otherwise empowered to do so) take a supply of water from any of the lochs rivers or streams referred to in the section of this Order entitled "Taking of water for the Galloway hydro-electric stations" :

Provided that—

(a) the quantity of water so to be taken shall not unreasonably reduce the amount of water available for the generation of electricity at the Galloway hydro-electric stations ; and

(b) before the county council carry out any works for the taking of water from any of the said lochs rivers or streams they shall submit plans and specifications of the proposed works for the approval of the Board (which approval shall not be unreasonably withheld) and the said works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the Board may reasonably specify :

Provided that the Board shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the county council to the contrary :

- (7) Any question or difference arising between the Board and the county council under this section shall be determined by arbitration in the manner hereinafter provided :

- (8) In this section the expression "property belonging to the county council" includes any road street bridge sewer drain pipe waterwork channel conduit culvert fence or river or flood embankment which is under the jurisdiction of or vested in the county council.

24. The section of this Order entitled "For protection of the county council of the Stewartry" shall apply for the protection of—

For protection of Secretary of State and town councils of burghs within Stewartry.

- (a) the Secretary of State so far as any property or rights or the exercise of any function vested in him under the Transfer of Functions (Roads Bridges and Ferries) Order 1955 is concerned or affected ; and

- (b) the town councils of all existing burghs within the Stewartry so far as their rights and interests are concerned or affected ;

in like manner as it applies for the protection of the county council of the Stewartry.

25. The following provisions for the protection of the county council of the county of Ayr (in this section referred to as "the county council") shall unless otherwise agreed in writing between the Board and the county council apply and have effect (that is to say) :—

For protection of Ayr County Council.

- (1) If the county council at any time after the passing of this Order apply for an order under the Water (Scotland) Act 1946 or a Provisional Order or Act of Parliament to enable them to take for primary purposes from loch Doon or from any river or stream within the catchment area of loch Doon water which the Board are by this Order empowered to take for the purposes of the Galloway hydro-electric works the Board shall not be entitled to oppose such application merely by reason of the powers conferred on them by this Part of this Order except so far as may be necessary to ensure the insertion in such order or Act of provisions to protect their electric lines and works :

- (2) (a) For the purpose of measuring the quantity of compensation water to be discharged into the river Doon the Board shall erect and maintain at a suitable point in the said river a proper and suitable measuring gauge or other apparatus (of a design to be approved by the county council which approval shall not be unreasonably withheld) over or through which the said compensation water shall flow ;

- (b) The measuring gauge or other apparatus shall be under the management and control of the Board but shall at all reasonable times be open to inspection and examination by the Inspector of Salmon Fisheries of Scotland or by any person duly authorised by the county council the town council of the burgh of Ayr the River Doon Fishery Board or the Secretary of State such person showing his authority if required :

- (3) (a) If the Board fail to maintain the outlet sluices or the measuring gauge or other apparatus in a reasonable state of repair or if through their neglect the said quantity of

compensation water does not so flow the Board shall not take any water from loch Doon until the said flow of compensation water has been restored ;

(b) The Board shall provide and maintain an efficient water level recorder to ensure that the foregoing condition is fulfilled :

- (4) Notwithstanding the acquisition by the Board of lands adjoining the loch Doon reservoir (forming part of the Galloway hydro-electric works) the Board shall not acquire any rights of boating fishing shooting or other sporting rights over or in connection with the said lands or the said reservoir and the whole rights of boating fishing shooting and other sporting rights at present enjoyed over or in connection with the said lands and the river Doon and the loch Doon reservoir are hereby reserved :

Provided that the Board shall be entitled to place and maintain boats on the loch for the purposes of their works and to use the foreshore for beaching such boats and for building boathouses thereon :

- (5) Any question or difference arising between the Board and the county council under this section shall be determined by arbitration in the manner hereinafter provided.

For protection
of Ayr
Corporation.

26. The following provisions for the protection of the provost magistrates and councillors of the burgh of Ayr (in this section referred to as "the corporation") shall unless otherwise agreed in writing between the Board and the corporation apply and have effect (that is to say) :—

- (1) Nothing in this Order shall prejudice or affect the powers of the corporation under the Ayr Burgh Acts 1873 to 1927 to take and use for the purposes of their water undertaking the waters of lochs Finlas Derclach Recawr Slochy and Goosie or the waters of any tributaries springs or streams which the corporation are by those Acts empowered to take and use for such purposes :
- (2) The Board shall not oppose any application which may hereafter be made by the corporation for an Act or order to enable the corporation to take additional water from the said lochs tributaries springs or streams for the purposes of their water undertaking :
- (3) Before the Board carry out any works authorised by this Part of this Order which may pass over across along under or otherwise interfere with any water pipes belonging to the corporation the Board shall submit plans and specifications of the proposed works to the corporation for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and at the sole risk and cost of the Board and at the sight (if given) and to the reasonable satisfaction of the water engineer of the corporation who shall be entitled by

himself or by a person employed by him to superintend the carrying out of the works and to inspect the materials used therefor:

Provided that—

(a) the corporation shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary; and

(b) if the said water engineer fails to superintend the carrying out of the works after the Board have given him fourteen days' notice of their intention to commence such works the works may be commenced without his superintendence:

(4) If by reason of the existence or use of the Galloway hydro-electric works or the failure of any part of these works to operate as it should or if in consequence of the exercise by the Board of the powers conferred on them by this Part of this Order the corporation—

(a) suffer any loss or damage; or

(b) incur any cost in diverting or altering any water pipes belonging to them or in carrying out any temporary or permanent works or in employing inspectors or watchmen or in taking any other precautions for ensuring the safety of any such pipes; or

(c) are put to any additional expense (including the payment of surface damages) in laying any conduit or line of pipes authorised by the Ayr Burgh (Water &c.) Order 1927;

the Board shall (notwithstanding any approval of plans and specifications by the corporation or the superintendence of works by the water engineer of the corporation)—

(i) make good to the corporation the loss or damage suffered and reimburse the corporation for the costs they have incurred and the additional expense to which they have been put; and

(ii) provide such servitudes as may be required by the corporation for the diversion or alteration of any water pipes belonging to the corporation in consequence of the said works of the Board:

(5) Any question or difference arising between the Board and the corporation under this section shall be determined by arbitration in the manner hereinafter provided:

(6) In this section the expression "water pipes belonging to the corporation" means any conduit or line of pipes belonging to the corporation which were in existence on 10th May 1929 or which the corporation are by the Ayr Burgh Acts 1873 to 1927 authorised to make and maintain.

PART VI

GENERAL PROVISIONS RELATING TO GENERATING STATIONS
AND HYDRO-ELECTRIC WORKS

Maps of
generating
station sites.

27.—(1) Two maps of each of the eleven generating station sites described in the First Schedule to this Order having been signed by Matthew George Fisher Q.C. Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 the said maps shall within thirty days after the commencement of this Order be deposited as follows (that is to say) one copy at the principal office of the Board (with the Secretary thereof) and the other at the Scottish Office London.

(2) If there is any discrepancy between the map of any of the said generating station sites and the description thereof contained in the First Schedule to this Order the map shall be deemed to be correct and shall prevail.

Restriction of
power to extend
generating
stations and
hydro-electric
works.

28. Nothing in this Order shall—

- (a) authorise the Board to generate electricity on any lands other than those described in the First Schedule to this Order; or
- (b) relieve the Board from the necessity of obtaining the Secretary of State's consent under the principal Acts to the extension of any existing generating station or to the erection of a new generating station or to the extension of any existing hydro-electric works.

Temporary
discharge of
water into
streams.

29.—(1) The Board may at any time cause the water in any of the works forming part of the Lanarkshire hydro-electric works or the Galloway hydro-electric works to be temporarily discharged into any available stream or watercourse.

(2) In exercising their powers under this section the Board shall do as little damage as possible and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such powers.

(3) The powers conferred by this section shall be exercised in such a way as not to damage or injuriously affect the works of the British Transport Commission.

(4) Any question or difference arising between the Board and any person under this section shall be determined by arbitration in the manner hereinafter provided.

Power to lay
down pipes.

30.—(1) Subject to the provisions of the Street Works Act the Board may in any street which they are authorised to break up under the principal Acts or this Order—

- (a) lay down pipes for conveying water and other materials matters or things used by them in or resulting from the process of generating or transforming electricity at or transmitting electricity to and from any generating station for the time being belonging to them; and
- (b) use maintain renew alter add to or cease to use and remove such pipes;

and the provisions of the principal Acts and of this Order with respect to the laying of electric lines and the breaking up of streets shall (so far as applicable) extend and apply to the laying down maintaining renewing altering adding to or removing of pipes for the purposes aforesaid.

(2) Nothing in this section shall authorise the Board to interfere in any way with—

(a) the railway works or property of the British Transport Commission ; or

(b) the works or property of or under the control of the trustees of the Clyde Navigation ; or

(c) any tramway ;

without the consent of the said commission or the said trustees or the owners of the tramway (as the case may be) but a consent under this subsection shall not be unreasonably withheld.

(3) Any question whether or not a consent is unreasonably withheld under this section shall be determined by arbitration in the manner hereinafter provided.

PART VII

WORKS AFFECTING STREETS AND BUILDINGS

31.—(1) Subject to the provisions of the Street Works Act the Board may (for the purposes of the principal Acts and this Order) break up—

Breaking up
of private
streets railways
and tramways.

(a) the private streets to which this section applies ; and

(b) any railways or tramways which are laid along or across any street which the Board are authorised to break up under the principal Acts or this Order.

(2) The private streets to which this section applies are those streets which though not maintainable by the Secretary of State or by a county council or town council are nevertheless used or intended to be used by the public.

(3) Nothing in this section shall authorise the Board (except in an emergency) to break up—

(a) any street belonging to the British Transport Commission or any port harbour or dock authority or the owners of any tramway undertaking without the consent of the said commission authority or owners (as the case may be) ; or

(b) any railway or tramway without the consent of the owners thereof ;

but a consent under this subsection shall not be unreasonably withheld.

(4) Any question whether or not a consent is unreasonably withheld under this section shall be determined by arbitration in the manner hereinafter provided.

32.—(1) Subject to the provisions of the principal Acts and of the Street Works Act the Board may construct and maintain sub-stations in or under any street.

Construction of
sub-stations
under streets.

(2) Nothing in this section shall authorise the Board to construct a sub-station—

- (a) in or upon any bridge carrying a street over a railway or under any bridge carrying a railway over a street or within fifteen feet of any portion of any abutment or wing wall of any such bridge without the consent of the British Transport Commission; but that consent shall not be unreasonably withheld; or
- (b) so as to interfere with or render less convenient the access to or exit from the Port of Leith or any station depot or hotel of the said commission; or
- (c) so as to interfere with or render less convenient the access to or exit from any dock quay harbour depot or other property of or under the control of the trustees of the Clyde Navigation; or
- (d) under or so as to interfere with any tramway without the consent of the owners thereof; or
- (e) within six feet of the wall of any naval establishment except with the consent of the Admiralty.

(3) Any question whether or not a consent is unreasonably withheld under this section and any other question or difference arising between the Board on the one hand and the commissioners for the harbour and docks of Leith or the British Transport Commission or the trustees of the Clyde Navigation or the owners of any tramway on the other shall be determined by arbitration in the manner hereinafter provided.

(4) In this section the following expressions have the meanings hereby respectively assigned to them (that is to say):—

“street” means any street which the Board are authorised to break up under any enactment including this Order;

“sub-station” includes transforming station section box and other works required in connection with the transmission and distribution of electricity and all such means of access and approach to the sub-station as may be necessary or convenient.

Laying of
electric lines
in tenements.

33.—(1) For the purpose of supplying the occupier of any part of a tenement the Board may with the consent of the owner of such part of the tenement but without the consent of the owner or occupier of any other part of the tenement lay and maintain electric lines and apparatus in through or across any stair passage or court forming a common access to the tenement.

(2) Subject to the provisions of the Rights of Entry (Gas and Electricity Boards) Act 1954 the Board may enter any premises for the purpose of exercising the powers conferred on them by this section.

(3) In exercising their powers under this section the Board shall do as little damage as possible and shall make good any damage done.

(4) Any question or difference arising between the Board and the owner or occupier of any part of a tenement under this section shall be determined by arbitration in the manner hereinafter provided.

(5) In this section the word "tenement" means a building (whether belonging wholly to one person or belonging in parts to different persons) which contains several separately occupied dwelling-houses or business premises entry to all or some of which is obtained by means of a common stair passage or court.

PART VIII

PIPES UNDER THE PAISLEY CANAL LINE

34.—(1) The Board may continue to use and maintain the existing conduit or line of pipes (in this Part of this Order referred to as "the said pipes") situated in the parish of Paisley and county of Renfrew commencing in the White Cart River at a point eighty-five yards or thereabouts south-westwards from the south-east corner of the field or enclosure No. 1215 on the ordnance survey map of the said parish (2nd edition 1897) passing under the Paisley canal line of the British Transport Commission and terminating at a point in that field or enclosure sixty-six yards or thereabouts north-westwards from the south-east corner of the said enclosure.

Maintenance of
pipes under
Paisley canal
line.

(2) The Board may renew alter add to or cease to use and remove the said pipes.

35. The following provisions for the protection of the British Transport Commission (in this section referred to as "the commission") shall unless otherwise agreed in writing between the Board and the commission apply and have effect (that is to say):—

For protection
of Paisley
canal line of
British
Transport
Commission.

(1) The Board shall maintain to the satisfaction of the commission those parts of the said pipes which pass under the Paisley canal line:

(2) Before the Board carry out any works on such parts of the said pipes they shall submit plans and specifications of the proposed works to the commission for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the commission may reasonably specify:

Provided that the commission shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary:

(3) The Board shall make good any loss or damage which the commission may suffer in consequence of the existence or use of the said pipes or the exercise by the Board of the powers conferred on them by this Part of this Order:

(4) Any question or difference arising between the Board and the commission under this section shall be determined by arbitration in the manner hereinafter provided.

PART IX

ELECTRIC LINES IN THE RIVER CLYDE

Maintenance of
electric lines
in bed of
Clyde.

36. Subject to the provisions of the principal Acts and of this Order—

(1) The Board may use and maintain the following existing electric lines belonging to them namely :—

(a) those commencing at Yoker power station and passing thence under the river Clyde to points at or near Clyde Street in the burgh of Renfrew; and

(b) those extending from Yoker power station along the north bank of the river Clyde to a point 467 feet or thereby north-west of the Yoker Burn outfall and thence under the river Clyde to a point 1,415 feet or thereby south-east of Blythswood Light;

(2) The Board may renew alter add to or cease to use and remove any of the lines referred to in paragraph (1) of this section;

(3) The lines referred to in paragraph (1) of this section and any renewals or alterations of or additions to the said lines are in this Part of this Order referred to as “the Clyde under river lines.”

For protection
of trustees
of Clyde
Navigation.

37. The following provisions for the protection of the trustees of the Clyde Navigation (in this section referred to as “the trustees”) shall unless otherwise agreed in writing between the Board and the trustees apply and have effect (that is to say) :—

(1) The Board shall not lay alter or add to any electric line across the river Clyde within the jurisdiction of the trustees without the consent of the trustees in writing but such consent shall not be unreasonably withheld:

(2) Before the Board carry out any works authorised by this Part of this Order they shall (if the works are to be carried out in any part of the river Clyde which is within the jurisdiction of the trustees or in or under any land belonging to the trustees) submit plans and specifications of the proposed works to the trustees for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the trustees may reasonably specify:

Provided that the trustees shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within six weeks of the receipt thereof they do not notify the Board to the contrary:

(3) The works authorised by this Part of this Order shall be carried out in such manner that the free and uninterrupted navigation of the river Clyde is not in any way impeded:

- (4) If at any time the trustees resolve to deepen the river Clyde where the Clyde under river lines cross it the Board shall within three months after such resolution has been intimated to them in writing remove the said lines from their position at the time and lay temporary cables across the river at such other place as may be reasonably specified by the trustees and after the intended deepening has been carried out shall lay or relay the said lines at a depth of at least three feet below the bed of the deepened navigable channel:
- (5) Neither the trustees nor any vessels using the navigation nor any persons using the navigation or casting anchors from vessels in the river shall be liable for any injury done to the Clyde under river lines or incur or be under any obligation or responsibility whatever in connection with the said lines or in respect of the existence use or maintenance thereof whether the trustees have approved of the operations of the Board or not their privileges and immunities as to such acts remaining unaffected to the same extent as if such lines had not been laid across the river:
- (6) Nothing herein contained shall diminish the rights and powers of the trustees over or in the navigation and their rights and powers in regard to widening and deepening of the river Clyde and these rights and powers may at all times be as freely and fully exercised as if the Clyde under river lines were not in existence:
- (7) If in consequence of the existence or use of the Clyde under river lines or the exercise by the Board of any of the powers conferred on them by this Part of this Order any damage is caused to the property of the trustees or to the property of those using the navigation or their persons the Board shall make good the damage done to such property and shall make reparation for such personal injury:
- (8) Any question or difference arising between the Board and the trustees under this section shall be determined by arbitration in the manner hereinafter provided.

PART X

ELECTRIC LINES IN THE RIVER FORTH

38. Subject to the provisions of the principal Acts and of this Order—

- (1) The Board may use and maintain the existing electric lines belonging to them which cross the river Forth in the bed thereof at two points namely—

Maintenance of
electric lines
in bed of
Forth.

(a) a point about 233 yards downstream from the Alloa railway bridge; and

(b) a point about 333 yards upstream from the north-westmost corner of the main building of Upper Taylorton Farm lying adjacent to the south bank of the river Forth in the parish of St. Ninians;

- (2) The Board may renew alter add to or cease to use and remove any of the lines referred to in paragraph (1) of this section ;
- (3) The lines referred to in paragraph (1) of this section and any renewals or alterations of or additions to the said lines are in this Part of this Order referred to as "the Forth under river lines".

For protection
of Forth
Conservancy
Board.

39. The following provisions for the protection of the Forth Conservancy Board (in this section referred to as "the conservators") shall unless otherwise agreed in writing between the Board and the conservators apply and have effect (that is to say) :—

- (1) The Board shall not lay alter or add to any electric line across the river Forth within the jurisdiction of the conservators without the consent of the conservators in writing but such consent shall not be unreasonably withheld :
- (2) Before the Board carry out any works authorised by this Part of this Order they shall (if the works are to be carried out in any part of the river Forth which is within the jurisdiction of the conservators) submit plans and specifications of the proposed works to the conservators for their approval (which approval shall not be unreasonably withheld) and the proposed works shall be carried out in accordance with the plans and specifications so approved and subject to such terms and conditions as the conservators may reasonably specify :

Provided that the conservators shall be deemed to have given their unconditional approval to any plans and specifications submitted to them under this section if within thirty days of the receipt thereof they do not notify the Board to the contrary :

- (3) The works authorised by this Part of this Order shall be carried out in such manner that the free and uninterrupted navigation of the river Forth is not in any way impeded :
- (4) If at any time the conservators resolve to deepen the river Forth where the Forth under river lines cross it the Board shall within three months after such resolution has been intimated to them in writing remove the said lines from their position at the time and lay temporary cables across the river at such other place as may be reasonably specified by the conservators and after the intended deepening has been carried out shall lay or relay the said lines at a depth of at least three feet below the bed of the deepened navigable channel :
- (5) Neither the conservators nor any vessels using the navigation nor any persons using the navigation or casting anchors from vessels in the river shall be liable for any injury done to the Forth under river lines or incur or be under any obligation or responsibility whatever in connection with the said lines or in respect of the use or maintenance thereof whether the conservators have approved of the operations of the Board or not their privileges and immunities as to such acts remaining unaffected to the same extent as if such lines had not been laid across the river :

- (6) Nothing herein contained shall diminish to any extent the rights and powers of the conservators over or in the navigation and their rights and powers in regard to widening and deepening of the river Forth and these rights and powers may at all times be as freely and fully exercised as if the Forth under river lines were not in existence :
- (7) If in consequence of the existence or use of the Forth under river lines or the exercise by the Board of any of the powers conferred on them by this Part of this Order any damage is caused to the property of the conservators or to the property of those using the navigation or to their persons the Board shall make good the damage done to such property and shall make reparation for such personal injury :
- (8) Any question or difference arising between the Board and the conservators under this section shall be determined by arbitration in the manner hereinafter provided.

PART XI

PROVISIONS RELATING TO SUPPLIES TO CONSUMERS

40.—(1) Section 23 of the Electricity (Supply) Act 1922 shall apply to supplies of electricity taken from the Board on extraordinary occasions in like manner as it applies to supplies taken for standby purposes. Supplies taken for standby purposes or on extraordinary occasions.

(2) Any question whether the said section (extended as aforesaid) applies arising between the Board and a consumer shall be settled by arbitration and the arbiter shall have power to determine the date on which the said section commenced to apply and to decide that any sum due to the Board shall be payable as from that date.

41. If the Board are required to provide a supply of electricity for temporary use only they shall be entitled (notwithstanding anything contained in the principal Acts or in any other enactment) to demand payment of the whole cost incurred by them in providing and removing the supply. Charge for providing a temporary supply.

42.—(1) If for the purpose of supplying a consumer the Board (at their own expense) have provided a separate transformer on the premises of the consumer the Board may (unless otherwise agreed in writing between the Board and the consumer)— Use of transformers.

(a) substitute for the transformer originally provided a transformer of the same or of a different capacity ; and

(b) use the transformer originally provided or the substituted transformer (as the case may be) for the purpose of supplying other consumers so long as such use does not prejudice or interfere with the supply to the consumer on whose premises the transformer is erected.

(2) Nothing in this section shall authorise the Board to instal a transformer which will extend beyond the limits of the site provided by the consumer without his consent.

(3) In this section the expression “ transformer ” includes switch-gear electric lines and ancillary apparatus.

Electricity
supplied for
one purpose
not to be used
for another
purpose.

43.—(1) Where a consumer is supplied with electricity for a specified purpose he shall not use the supply or allow it to be used for any other purpose for which a higher price is payable unless he has first obtained the written permission of the Board to do so.

(2) If a consumer contravenes the provisions of this section he shall be guilty of an offence and for every such offence shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Where a person is convicted of an offence under this section the court may direct that all or any portion of the electricity supplied to that person during the year before the date when the proceedings were instituted shall be charged at the higher price.

(4) If the Board have reasonable grounds for believing that a consumer is contravening the provisions of this section they may cut off the supply to that consumer and refuse to resume such supply until they are satisfied that such supply will be used only for the purpose for which it is provided.

(5) Nothing in this section shall prevent the British Transport Commission from using for signalling apparatus (including colour light signalling) electricity supplied to them by the Board for any purpose.

Meter rents.

44. Section 21 of the Electric Lighting Act 1882 and section 18 of the Electric Lighting Act 1909 shall apply to any person whose meter rent is in arrear in like manner as they apply to a person whose payments for the supply of electrical energy are, in arrear.

Recovery of
cost of cutting
off supply.

45. If in consequence of any act omission or default of any person the Board lawfully cut off a supply they may recover the cost of doing so from that person.

Penalty for
failure to supply
in accordance
with agreement.

46. A consumer supplied by the Board under the terms of any agreement shall be deemed to be a person to whom the Board may be and are required to supply energy within the meaning of section 30 (Penalty for failure to supply) of the schedule of 1899 and—

(a) the provisions of that section shall apply to the supply provided by the Board under the agreement; and

(b) any failure on the part of the Board to supply energy to such consumer under the agreement shall not render them liable for any damages occasioned to such consumer by reason of such failure unless the failure is caused by or in consequence of the wilful neglect or default of the Board:

Provided that nothing in this section shall—

(i) deprive any consumer (supplied under the terms of any agreement in force at the commencement of this Order) of any right to which he would have been entitled but for the provisions of this section; and

(ii) apply in relation to any agreement which expressly excludes the application of this section.

Period of error
in defective
meter.

47. If in determining a difference between the Board and a consumer about the correctness of a meter under section 57 of the schedule of 1899 a meter examiner finds that the meter is registering

erroneously the meter shall (in the absence of proof to the contrary) be deemed to have so registered from the date of the penultimate periodical meter reading occurring before the meter was tested or removed for test by the meter examiner.

48. The Board may levy and recover such charge as they think fit for taking at the request of and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any electricity meter fixed in any premises. Charge for special meter reading.

49. In calculating the sum payable from time to time by any person for electricity or electrical fittings supplied to that person by the Board the calculation shall be made to the nearest penny that is to say any fraction of a penny resulting from the calculation which amounts to or exceeds a halfpenny shall be reckoned as a penny and any lesser fraction shall be ignored. Fractions of a penny how to be reckoned.

50.—(1) The power to enter premises conferred on the Board by section 24 of the Electric Lighting Act 1882 as extended by section 16 of the Electric Lighting Act 1909 shall be further extended as in this section provided: Extension of power to enter premises.

Provided that the provisions of the Rights of Entry (Gas and Electricity Boards) Act 1954 shall extend and apply with respect to the powers conferred on the Board by this section.

(2) The Board may enter premises in which electrical fittings are being or have been installed with a view to taking a supply of electricity from the Board.

(3) The Board may enter premises for the purpose of—

(a) inspecting any electrical fittings on the premises whether such fittings belong to the Board or not ;

(b) ascertaining whether any enactment regulation or byelaw relating to the supply of electricity is being or has been contravened ; and

(c) cutting off the supply of electricity to the premises where—

(i) any such contravention is found to exist and it is in the opinion of the Board a matter of urgency that the supply should be cut off ; or

(ii) the Board are otherwise authorised by law to cut off the supply.

(4) Any question or difference arising between the Board and a consumer in regard to the restoration of a supply of electricity which has been cut off in pursuance of sub-paragraph (i) of paragraph (c) of the immediately preceding subsection shall in default of agreement be determined by arbitration in the manner hereinafter provided.

(5) If any person obstructs an officer exercising powers under the said section 24 (extended as aforesaid) he shall be guilty of an offence and for every such offence shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

51.—(1) Section 38 of the Gasworks Clauses Act 1871 (which is incorporated with the Electric Lighting Act 1882 and relates Penalty for injuring seals etc.

among other things to the injuring of meters) shall apply to any person who wilfully—

(a) injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus affixed by the Board to any electric line within a consumer's premises; or

(b) opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

(2) If any person accidentally injures or detaches any such seal or locking device or accidentally opens any such sealed or locked receptacle meter or apparatus he shall within forty-eight hours of doing so notify the Board thereof in writing.

(3) Any person who fails to comply with the provisions of subsection (2) of this section shall be guilty of an offence and for every such offence shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds.

PART XII

MISCELLANEOUS

Sale of
superfluous land.

52.—(1) Notwithstanding anything in the principal Acts or in any other enactment sections 120 to 125 of the Lands Clauses Consolidation (Scotland) Act 1845 (which relate to the sale of superfluous land) shall not apply to the Board.

(2) Nothing in this section shall affect the operation of section 16 of the Act of 1947 (which relates to the right of pre-emption by local authorities in certain land vested in the Board).

Provision of
telephones.

53. The provisions of the principal Acts the Street Works Act and this Order with respect to the construction maintenance and renewal of electric lines (whether underground or overhead) shall *mutatis mutandis* apply to the construction maintenance and renewal of any telephone or telegraph lines or apparatus which in the opinion of the Board are required for the purposes of their business.

Keeping of
mains records.

54.—(1) Notwithstanding anything to the contrary contained in section 60 of the schedule of 1899 (which relates to the keeping of mains records) the Board may instead of keeping the whole of such records at their principal office in the district keep them all or parts of them at such of their local offices (whether within or outside the district) as may from time to time be found convenient.

(2) In this section the expression "mains records" means the maps and sections which the Board are required to keep under the aforesaid section.

Penalty for
interference
with works.

55. If any person without lawful excuse (the proof whereof shall lie on him) wilfully—

(a) interferes with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Board; or

(b) does or causes to be done anything which is calculated to interfere with or damage any such line work or apparatus; he shall be guilty of an offence and for every such offence shall (without prejudice to any other liability or cause of action which

may arise out of or by reason of such act) be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds.

56.—(1) Where any matter is by this Order directed to be determined by arbitration such matter shall (except as otherwise expressly provided) be determined by an arbiter to be agreed upon between the parties or (failing agreement) nominated by the Secretary of State on the application of either party. Arbitration.

(2) Any arbiter so appointed shall have the like powers for securing the attendance of witnesses and the production of documents and with regard to the examination of witnesses on oath and the awarding of expenses as if the arbitration were under a submission.

(3) The arbiter may and if so directed by the Court of Session shall state a case for the opinion of that court on any question of law arising in the proceedings.

57. Proceedings for the recovery of any demand made under the authority of the principal Acts or this Order whether provision is or is not made for the recovery thereof in any specified court or manner may be taken in any sheriff court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court according to the law of Scotland for the time being. Recovery of demands.

58. Section 63 of the Act of 1947 shall apply to any notice or other document required or authorised to be given delivered or served under this Order in like manner as it applies to notices required to be served under that Act. Service of notices etc.

59.—(1) The Board shall not under the powers of this Order construct alter or extend any works on in under or over tidal waters or tidal lands below high-water mark except in accordance with plans and sections approved by the Minister of Transport and Civil Aviation and subject to such restrictions and regulations as the said Minister may prescribe before such work is begun. Works below high-water mark to be subject to approval of Minister of Transport and Civil Aviation.

(2) If any such work is commenced or completed contrary to the provisions of this section the Minister of Transport and Civil Aviation may abate and remove the same and restore the site thereof to its former condition at the cost of the Board and the amount of such cost shall be a debt due from the Board to the Crown and shall be recoverable accordingly.

60. If at any time the Minister of Transport and Civil Aviation deems it expedient to order a survey and examination of any work belonging to the Board on in under or over tidal waters or tidal lands below high-water mark or of the site upon which it is proposed to construct any such work the Board shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Board to the Crown and shall be recoverable accordingly. Survey of certain works by Minister of Transport and Civil Aviation.

61.—(1) Where any work belonging to the Board on in under or over tidal waters or tidal lands below high-water mark is abandoned or suffered to fall into decay the Minister of Transport and Civil Aviation or in the case of any part of the river Clyde within their jurisdiction the trustees of the Clyde Navigation may by notice in writing either require the Board at their own expense to repair Abatement of work abandoned or decayed:

and restore such part of such work as is situated below high-water mark or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister of Transport and Civil Aviation or the trustees of the Clyde Navigation (as the case may be) may think proper :

Provided that if there is any conflict between a requirement of the Minister and a requirement of the trustees under this section the requirement of the Minister shall prevail.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situated above high-water mark and is in such condition as to interfere or cause reasonable apprehension that the same may interfere with navigation or the exercise of public rights over the foreshore the Minister of Transport and Civil Aviation or in the case of any part of the river Clyde as aforesaid the trustees of the Clyde Navigation may include any such part of such work or any portion thereof in any notice under this section.

(3) If the Board fail to comply with any notice under this section within thirty days from the date when the notice is served upon them the Minister of Transport and Civil Aviation or in the case of any part of the river Clyde as aforesaid the trustees of the Clyde Navigation may execute the works specified in the notice at the expense of the Board and the amount of such expense shall be a debt due from the Board to the Crown or the trustees of the Clyde Navigation (as the case may be) and shall be recoverable accordingly.

Lights on
works during
construction.

62.—(1) If under this Order the Board construct alter or extend any works below high-water mark they shall during the whole time of such construction alteration or extension exhibit and keep burning every night from sunset to sunrise at or near the works such lights (if any) and take such other precautions for the prevention of danger to navigation as the Minister of Transport and Civil Aviation shall after consultation with the trustees of the Clyde Navigation where such works are in any part of the river Clyde within their jurisdiction from time to time direct.

(2) If the Board fail to comply with any direction given in terms of this section they shall be guilty of an offence and for every such offence shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Permanent
lights on works.

63.—(1) If any works belonging to the Board are situated below high-water mark the Board shall at the outer extremity of the works exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other precautions for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct or where such works are in any part of the river Clyde within the jurisdiction of the trustees of the Clyde Navigation as the said trustees may from time to time direct.

(2) If the Board fail to comply with any such directions they shall be guilty of an offence and for every such offence shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

64.—(1) In the case of injury to or destruction or decay of any works or any part of any works belonging to the Board which are situated on in under or over any tidal waters or tidal lands below high-water mark the Board shall—

Provision
against danger
to navigation.

- (a) apply to the Commissioners of Northern Lighthouses or where such tidal waters or tidal lands are within the jurisdiction of the trustees of the Clyde Navigation to the said trustees for directions as to the means to be taken for preventing (so far as may be) danger to navigation ; and
- (b) comply with any such directions given to them by the said commissioners or the said trustees as the case may be.

(2) If the Board fail to apply for or to comply with any such directions they shall be guilty of an offence and for every such offence shall be liable on summary conviction to a penalty not exceeding ten pounds and to a daily penalty not exceeding twenty shillings.

65. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

66.—(1) Subject to the provisions of this Order the enactments mentioned in the Second Schedule to this Order shall be repealed to the extent specified in the third column of that schedule.

Repeal and
savings.

(2) Nothing in this repeal shall affect any existing mortgage granted by the former Ayrshire Electricity Board and any such mortgage may be transferred discharged or otherwise dealt with in the same manner as if the Act confirming this Order had not been passed.

(3) Nothing in this repeal shall affect—

- (a) any existing scheme arrangement or practice in regard to the grant of gratuities pensions or allowances or the making of other payments to—

- (i) any person who was (at 31st March 1948) in the employment of the former Clyde Valley Electrical Power Company or the former Galloway Water Power Company ; or

- (ii) the widow family or dependants of any such person :
or

- (b) any existing right which the Board may have to alter or discontinue any such scheme arrangement or practice as is mentioned in this subsection.

(4) Nothing in this repeal shall affect any agreement made under any enactment repealed by this Order and which was in force immediately before the commencement of this Order and any such agreement shall be construed and shall have effect as if the Act confirming this Order had not been passed.

(5) Nothing in this repeal shall affect any legal proceedings instituted before the commencement of this Order under or by virtue of any enactment repealed by this Order and such proceedings may be continued and appealed against as if the Act confirming this Order had not been passed.

(6) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section 38 of the Interpretation Act 1889 with regard to the effect of repeals.

Saving for town
and country
planning.

67. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act.

Costs of Order.

68.—(1) The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Board out of revenue or out of money to be borrowed for that purpose which money the Board are hereby authorised to borrow.

(2) Any money borrowed by the Board for the purposes of this section shall be repaid within five years of the commencement of this Order.

SCHEDULES

FIRST SCHEDULE

(Referred to in the sections of this Order entitled—

“Maintenance of certain thermal generating stations”;

“Maintenance of the Lanarkshire hydro-electric works”;

“Maintenance of the Galloway hydro-electric works”;

“Maps of generating station sites”;

“Restriction of power to extend generating stations and hydro-electric works”).

PART I

GALASHIELS POWER STATION

Lands in the burgh and parish of Galashiels in the county of Selkirk extending to 2.164 acres or thereby bounded on the west by the access road between Galashiels power station and Tweed Road Galashiels along which it extends in a southerly direction measuring from the gate across the railway siding aftermentioned a distance of 150 feet or thereby on the south by other lands belonging to

the Board along which it extends in an easterly direction a distance of 674 feet 6 inches or thereby and on the north-east and north by a railway siding belonging to the Board along which it extends in a north-westerly and westerly direction measuring along the centre line of a fence and following the curve thereof a distance of 723 feet or thereby to the point of commencement of the said western boundary.

1ST SCH.
—cont.

PART II

GREENOCK POWER STATION

Lands in the burgh and parish of Greenock in the county of Renfrew extending to 1.78 acres or thereby lying on the south side of Dellingburn Street and bounded as follows on or towards the north partly by other subjects belonging to the Board lying between the lands hereby described and the said Dellingburn Street along which it extends first in an easterly direction a distance of 54 feet 6 inches or thereby and then in a northerly direction a distance of 34 feet 4 inches or thereby partly by the said Dellingburn Street along which it extends in an east-north-easterly direction a distance of 103 feet 3 inches or thereby and partly by other subjects belonging to the Board along which it extends first in a south-easterly direction a distance of 67 feet 9 inches or thereby and then in an easterly direction following the curve and bend a distance of 181 feet or thereby on or towards the east by other subjects belonging to the Board along which it extends first in a southerly direction a distance of 102 feet or thereby then in an east-south-easterly direction a distance of 14 feet 6 inches or thereby and then in a south-westerly direction a distance of 260 feet or thereby on or towards the south partly by subjects belonging or reputed to belong to the Distillers Company Limited along which it extends first in a north-westerly direction a distance of 32 feet or thereby then in a southerly direction a distance of 38 feet or thereby then in a north-westerly direction a distance of 35 feet or thereby and then in a south-westerly direction a distance of 30 feet or thereby and partly by subjects belonging or reputed to belong to Rankin & Blackmore Limited along which it extends in a west-north-westerly direction a distance of 91 feet or thereby and on the west by other subjects belonging to the Board along which it extends in a northerly direction a distance of 258 feet or thereby to the point of commencement of said northern boundary.

PART III

PORTOBELLO POWER STATION

That area or piece of ground known as Westbank Portobello Edinburgh extending to 8.07 acres or thereby and bounded as follows viz. on the south-west by the High Street of Portobello on the north by King's Road and the approach from King's Road to the Promenade on the north-east by the Promenade and on the south-east by Rosebank Lane.

1ST SCH.

—cont.

PART IV

YOKER POWER STATION

Lands in the parish of Renfrew and county of Lanark extending (under exception of the area of ground aftermentioned) to 9.24 acres or thereby bounded on the north and north-east by lands belonging or reputed to belong to the British Transport Commission along which it extends in an easterly direction a distance of 380 feet or thereby thence in a south-easterly direction a distance of 895 feet or thereby on or towards the south-east partly by Yoker Ferry Road and partly by lands belonging or reputed to belong to the trustees of the Clyde Navigation along which it extends in a south-westerly and a north-westerly direction following the curve a total distance of 518 feet or thereby and thence again in a south-westerly direction a distance of 263 feet or thereby again on the south-west by the river Clyde along which it extends measuring in a north-westerly direction a distance of 728 feet or thereby on the north-west partly by lands belonging or reputed to belong to the Distillers Company Limited and partly by other lands belonging to the Board along which it extends measuring in a north-easterly direction a total distance of 125 feet or thereby again on the south-west partly by the said other lands belonging to the Board and partly by the said lands belonging or reputed to belong to the Distillers Company Limited along which it extends measuring in a north-westerly direction a total distance of 102 feet or thereby and again on the north-west by Greenlaw Road along which it extends measuring in a north-easterly direction a distance of 141 feet or thereby to the point of commencement of the said northern boundary but excepting from the said lands above described the area of ground belonging or reputed to belong to John Mulhern comprising 444 $\frac{4}{9}$ square yards or thereby bounded on the south-east by the said Yoker Ferry Road along which it extends a distance of 40 feet or thereby and on the south-west north-west and north-east by the lands above described along which it extends 95 feet 2 inches or thereby 40 feet or thereby and 104 feet 10 inches or thereby respectively.

PART V

THE LANARKSHIRE HYDRO-ELECTRIC STATIONS

1. *Bonnington power station*

Lands in the parishes of Lanark and Lesmahagow in the county of Lanark extending to 5.92 acres or thereby situated on and adjacent to the river Clyde bounded on the south by property belonging to the Board along which it extends a distance of 294 feet or thereby measured in a west-south-westerly direction from a point on the east side of the said river 80 feet or thereby due west of the south-west corner of the building known as the Pavilion at Bonnington power station on the west by lands belonging or reputed to belong to Charles Joseph Edmistoune Cranstoun of Corehouse along which it extends in a north-north-westerly direction following the bends a distance of 800 feet or thereby on the north partly by lands belonging or reputed to belong to the said Charles Joseph Edmistoune Cranstoun and partly by other property belonging to the Board along which it extends in a north-easterly direction a total distance of

356 feet or thereby and on the east by other property belonging to the Board along which it extends in a south-south-easterly direction a distance of 885 feet or thereby to the point of commencement of the said southern boundary.

1ST SCH.
—cont.

2. Stonebyres power station

Lands in the parishes of Lanark and Lesmahagow in the county of Lanark extending to 5.04 acres or thereby situated on and adjacent to the river Clyde bounded on all four sides by other property belonging to the Board along which it extends on the north-west 150 yards or thereby measured in a north-easterly direction from a point on the south-west side of the river Clyde 162 yards or thereby north-east of the northernmost corner of the building known as Cairniepark and 195 yards or thereby measured in a north-westerly direction from the northernmost corner of the stone depot situated 170 yards or thereby to the south-eastward of Cairniepark on the north-east 150 yards or thereby measured in a south-easterly direction on the south-east 160 yards or thereby measured in a south-westerly direction and on the south-west 170 yards or thereby measured in a north-westerly direction to the point of commencement of the said north-western boundary.

PART VI

THE GALLOWAY HYDRO-ELECTRIC STATIONS

1. Tongland power station

Lands in the parishes of Tongland and Kirkcudbright and Stewartry of Kirkcudbright extending (under exception of the public roads aftermentioned) to 16.52 acres or thereby bounded as follows commencing at a point on the left bank of the river Dee on the south side of Tongland old bridge on the south-east by the left bank of the said river Dee along which it extends in a south-westerly direction measuring from the said point of commencement a distance of 1,750 feet or thereby on the west-south-west by other lands belonging to the Board along which it extends in a north-north-westerly direction following the curve a distance of 315 feet or thereby on the north-west by the public road leading from Kirkcudbright to Castle Douglas along which it extends in a north-easterly direction following the bends a distance of 610 feet or thereby on the south-west partly by an imaginary straight line across the said public road leading from Kirkcudbright to Castle Douglas and partly by other lands belonging to the Board along which it extends in a north-westerly direction a total distance of 210 feet or thereby again on or towards the north-west by lands belonging or reputed to belong to the trustees of the late Colonel Claud Archibald Scott Maitland of Dundrennan and Cumstoun along which it extends first in a north-easterly direction a distance of 225 feet or thereby and then in a north-westerly direction a distance of 28 feet or thereby again on the north-west by other lands belonging to the Board along which it extends in a north-easterly direction a distance of 620 feet or thereby on the north partly by the road leading from Langbarns Farm to the said public road leading from Kirkcudbright to Castle Douglas and partly by an imaginary straight line across the said public road along which it extends in an

1ST SCH.
—cont.

easterly direction to the east side of the said public road a total distance of 215 feet or thereby on the north-east by lands belonging or reputed to belong to the said trustees of the late Colonel Claud Archibald Scott Maitland of Dundrennan and Cumstoun along which it extends in a south-easterly direction a distance of 230 feet or thereby again on the south-east and the east partly by the subjects known as Linn Bank belonging or reputed to belong to Thomas Palmer and partly by an imaginary straight line across the public road leading to Tongland old bridge along which it extends in a south-westerly and southerly direction a total distance of 292 feet or thereby again on the north-west and north-east partly by the said last-mentioned public road and partly by Tongland old bridge along which it extends to the point of commencement following the bend in a north-easterly and south-easterly direction a total distance of 350 feet or thereby but excepting so far as within the said boundaries the said public roads.

2. Glenlee power station

Lands in the parish of Kells and Stewartry of Kirkcudbright extending (under exception of the public road second aftermentioned) to 15.56 acres or thereby bounded as follows commencing at the junction of the public road leading from Craigshinnie with the public road leading from Garroch to New Galloway on the south-east partly by the said public road leading from Craigshinnie and partly by lands belonging to the Board along which it extends measuring from the said junction of the said two roads in a south-westerly direction a total distance of 200 feet or thereby on the south-west partly by other lands belonging to the Board and partly by lands belonging or reputed to belong to the heirs of the late Arthur Young Garroch New Galloway along which it extends measuring in north-westerly and north-north-westerly directions a total distance of 1,140 feet or thereby on the north-west by lands belonging or reputed to belong to the said heirs of the late Arthur Young along which it extends in a north-easterly direction a distance of 177 feet or thereby on the north-east by the said public road leading from Garroch to New Galloway along which it extends in a south-easterly direction following the curve a distance of 496 feet or thereby again on the north-west partly by an imaginary straight line across the said public road leading from Garroch to New Galloway and partly by lands belonging or reputed to belong to the said heirs of the late Arthur Young along which it extends in a north-easterly direction to the *medium filum* of Coom Burn a total distance of 550 feet or thereby again on the north-east by the *medium filum* of the said burn along which it extends in a south-easterly direction a distance of 790 feet or thereby and again on the south-east partly by other lands belonging to the Board and partly by an imaginary straight line across the said public road leading from Garroch to New Galloway along which it extends in a south-westerly direction a total distance of 710 feet or thereby to the point of commencement but excepting so far as within the said boundaries the said public road leading from Garroch to New Galloway.

3. *Earlstoun power station*1ST SCH.
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Lands in the parish of Kells and Stewartry of Kirkcudbright extending (under exception of the public road aftermentioned) to 8.22 acres or thereby bounded on the east by the *medium filum* of the Water of Ken along which it extends measuring from a point on the boundary between the parishes of Kells and Dalry at the south side of Allangibbon bridge and proceeding in a southerly direction along the *medium filum* of the said Water of Ken a distance of 1,200 feet or thereby on the south partly by other lands belonging to the Board and partly by an imaginary straight line across the public road leading from Allangibbon bridge to New Galloway along which it extends in a west north westerly direction to the west side of the said public road a total distance of 310 feet or thereby on or towards the south-west by lands belonging or reputed to belong to Lieutenant-Colonel William Forbes of Callendar Earlstoun House Dalry along which it extends first in a north-north-westerly direction a distance of 119 feet or thereby then in a north-north-easterly direction a distance of 117 feet or thereby then in a north-westerly direction a distance of 33 feet 6 inches or thereby then in a west-south-westerly direction a distance of 106 feet or thereby and again in a north-westerly direction a distance of 16 feet or thereby on the west by other lands belonging to the Board along which it extends in a north-north-easterly direction a distance of 970 feet or thereby and on the north partly by other lands belonging to the Board partly by the said public road leading from Allangibbon bridge to New Galloway and partly by Allangibbon bridge along which it extends to the point of commencement of the said eastern boundary a total distance of 300 feet or thereby but excepting so far as within the said boundaries the said public road leading from Allangibbon bridge to New Galloway.

4. *Carsfad power station*

Lands in the parishes of Kells and Dalry and Stewartry of Kirkcudbright extending (under exception of the public road aftermentioned) to 14.06 acres or thereby bounded as follows commencing at a point on the boundary between the said two parishes a distance of 620 feet or thereby measured in a southerly direction from the west-most corner of Carsfad power station on the south-south-east by lands belonging or reputed to belong to Lieutenant-Colonel William Forbes of Callendar Earlstoun House Dalry along which it extends measuring from the said point on the boundary between the said two parishes in a west-south-westerly direction to a point on the east side of the public road leading from New Galloway to Ayr a distance of 355 feet or thereby on or towards the west partly by an imaginary straight line measuring in a north-north-westerly direction diagonally across the said public road along which it extends a distance of 150 feet or thereby partly by lands belonging or reputed to belong to the said Lieutenant-Colonel William Forbes of Callendar along which it extends measuring in a north-north-westerly direction a distance of 230 feet or thereby and in a north-westerly direction a distance of 160 feet or thereby and

1ST SCH.
—cont.

partly by other lands belonging to the Board along which it extends measuring in a north-north-westerly direction a distance of 160 feet or thereby and in a northerly direction a distance of 540 feet or thereby on the north partly by other lands belonging to the Board and partly by an imaginary straight line across the said public road along which it extends in an easterly direction a total distance of 735 feet or thereby on or towards the east partly by other lands belonging to the Board along which it extends in a southerly direction a distance of 230 feet or thereby partly by other lands belonging or reputed to belong to the said Lieutenant-Colonel William Forbes of Callendar along which it extends first in a westerly direction a distance of 90 feet or thereby then in a southerly direction measuring along the left bank of the Water of Ken following the curves and bends a distance of 490 feet or thereby then in a westerly direction by an imaginary straight line across the said Water of Ken to the *medium filum* thereof along which it extends a distance of 55 feet or thereby and partly by the *medium filum* of the said Water of Ken along which it extends in a southerly direction a distance of 320 feet or thereby to the point of commencement of the said first-mentioned southern boundary but excepting so far as within the said boundaries the said public road leading from New Galloway to Ayr.

5. Kendoon power station

Lands in the parish of Dalry and Stewartry of Kirkcudbright extending to 15.04 acres or thereby bounded as follows commencing at a point on the left bank of the Water of Ken 265 feet or thereby south-south-east of the meeting point in the said Water of Ken of the parishes of Dalry Kells and Carsphairn on or towards the west partly by the said Water of Ken along which it extends measuring from the said point of commencement in a northerly direction following the bends and curves a distance of 970 feet or thereby partly by an imaginary straight line over the said Water of Ken along which it extends in a north-easterly direction a distance of 185 feet or thereby and partly by lands belonging or reputed to belong to John McTurk Alexander along which it extends further in a north-easterly direction a distance of 405 feet or thereby on or towards the north partly by other lands belonging or reputed to belong to the said John McTurk Alexander and partly by other lands belonging to the Board along which it extends in an east-south-easterly direction a total distance of 395 feet or thereby on or towards the east by other lands belonging or reputed to belong to the said John McTurk Alexander along which it extends first in a south-westerly direction a distance of 555 feet or thereby and then in a south-south-easterly direction a distance of 575 feet or thereby and on or towards the south-east and south partly by other lands belonging or reputed to belong to the said John McTurk Alexander along which it extends first in a south-westerly direction a distance of 415 feet or thereby and then in a west-south-westerly direction a distance of 295 feet or thereby and partly by other lands belonging to the Board along which it extends further in a west-south-westerly direction a distance of 53 feet or thereby to the said point of commencement.

SECOND SCHEDULE

(referred to in the section of this Order entitled "Repeal and savings")

ENACTMENTS REPEALED

Session and chapter	Short title	Extent of repeal
61 & 62 Vict. c. xxxvii.	<i>Local enactments applying within the former supply area of the Airdrie Corporation.</i>	
	The Electric Lighting Orders Confirmation (No. 1) Act 1898.	The whole Act so far as relating to the confirmation of the Airdrie Burgh Electric Lighting Order 1898 scheduled thereto and the whole of that Order so far as unrepealed.
5 Edw. 7. c. cxv.	Deed of transfer of the Airdrie electricity undertaking granted by the Airdrie Corporation to the Scottish House to House Electricity Co. Ltd. dated 26th November 1901.	The whole Deed.
	The Electric Lighting Orders Confirmation (No. 8) Act 1905.	The whole Act so far as relating to the confirmation of the Airdrie Burgh Electric Lighting Order 1905 scheduled thereto and the whole of that Order.
	Deed of transfer of the Airdrie electricity undertaking granted by the Scottish House to House Electricity Co. Ltd. to the Coatbridge and Airdrie Electric Supply Co. Ltd. dated 8th June 1907.	The whole Deed.
	Deed of transfer of the Airdrie electricity undertaking granted by the Coatbridge and Airdrie Electric Supply Co. Ltd. to the Airdrie Corporation dated 12th November 1934.	The whole Deed.
53 & 54 Vict. c. cxci.	<i>Local enactments applying within the former supply area of the Ayrshire Electricity Board.</i>	
	The Electric Lighting Orders Confirmation (No. 8) Act 1890.	The whole Act so far as relating to the confirmation of the Ayr Burgh Electric Lighting Order 1890 scheduled thereto and the whole of that Order.

2ND SCH.
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Session and chapter	Short title	Extent of repeal
62 & 63 Vict. c. cxix.	The Electric Lighting Orders Confirmation (No. 5) Act 1899.	The whole Act so far as relating to the confirmation of the Kilmarnock Electric Lighting Order 1899 scheduled thereto and the whole of that Order.
62 & 63 Vict. c. clxiv.	The Ayr Burgh Act 1899 ...	Section eighty-two.
3 Edw. 7. c. xlviii.	The Electric Lighting Orders Confirmation (No. 4) Act 1903.	The whole Act so far as relating to the confirmation of the Irvine Electric Lighting Order 1903 scheduled thereto and the whole of that Order.
10 Edw. 7. & 1 Geo. 5. c. lxxvi.	The Electric Lighting Orders Confirmation (No. 2) Act 1910.	The whole Act so far as relating to the confirmation of the Ardrossan Saltcoats and District Electric Lighting Order 1910 scheduled thereto and the whole of that Order.
4 & 5 Geo. 5. c. cxix.	The Electric Lighting Orders Confirmation (No. 6) Act 1914.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of the Ayr Burgh Electric Lighting (Extension) Order 1914 scheduled thereto and the whole of that Order.
4 & 5 Geo. 5. c. cxxi.	The Electric Lighting Order Confirmation (No. 9) Act 1914.	The whole Act and the whole Order (the Kilmarnock Electric Lighting (Extension) Order 1914) scheduled thereto.
	The Kilmarnock Electricity (Extension) Special Order 1922.	The whole Order.
12 & 13 Geo. 5. c. lxxiv.	The Ayr Burgh (Electricity) Act 1922.	The whole Act.
	The Ayrshire Electricity Special Order 1924.	The whole Order.
16 & 17 Geo. 5. c. xv.	The Ayrshire Electricity Order Confirmation Act 1926.	The whole Act and the whole Order (the Ayrshire Electricity Order 1926) scheduled thereto.
	The Ayrshire Electricity (Extension) Special Order 1927.	The whole Order.

Session and chapter	Short title	Extent of repeal
	<i>Local enactments applying within the former supply area of the Borrowstounness Corporation.</i>	
3 Edw. 7. c. xlviii.	The Electric Lighting Orders Confirmation (No. 4) Act 1903.	The whole Act so far as relating to the confirmation of the Borrowstounness Electric Lighting Order 1903 scheduled thereto and the whole of that Order.
2 & 3 Geo. 5. c. xcvi.	The National Electric Construction Company Limited Act 1912.	Sections three and four and the Third Schedule so far as relating to the agreement between the Borrowstounness Corporation and the National Electric Construction Co. Ltd. dated 14th and 22nd February 1905.
	<i>Local enactments formerly applying to the Central Electricity Board.</i>	
	The Central Scotland Electricity Scheme 1927.	The whole Scheme.
	The South Scotland Electricity Scheme 1931.	The whole Scheme.
	The Central Electricity Board (Portobello Land) Special Order 1936.	The whole Order.
	The Central Electricity Board (Garscube Lands) Special Order 1938.	The whole Order.
	<i>Local enactments applying within the former supply area of the Clyde Valley Electrical Power Co.</i>	
1 Edw. 7. c. ccxxv.	The Clyde Valley Electrical Power Act 1901.	The whole Act so far as unrepealed.
4 Edw. 7. c. lxxxix.	The Clyde Valley Electrical Power Act 1904.	The whole Act so far as unrepealed.
2 & 3 Geo. 5. c. cl.	The Clyde Valley Electrical Power Order Confirmation Act 1912.	The whole Act and the whole Order scheduled thereto so far as unrepealed.
8 & 9 Geo. 5. c. xlviii.	The Clyde Valley Electrical Power Order Confirmation Act 1918.	The whole Act and the whole Order scheduled thereto.
9 & 10 Geo. 5. c. xcvi.	The Clyde Valley Electrical Power Order Confirmation Act 1919.	The whole Act and the whole Order scheduled thereto.
14 & 15 Geo. 5. c. xcii.	The Clyde Valley Electrical Power Act 1924.	The whole Act so far as unrepealed.
24 & 25 Geo. 5. c. lxxxiii.	The Clyde Valley Electrical Power Order Confirmation Act 1934.	The whole Act and the whole Order scheduled thereto.

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Session and chapter	Short title	Extent of repeal
1 Edw. 8. & 1 Geo. 6. c. xcix.	The Clyde Valley Electrical Power Order Confirmation Act 1937. Order made by the Electricity Commissioners dated 5th May 1945 authorising the Clyde Valley Electrical Power Co. to supply electricity to certain premises in the parish of Broughton Glenholm and Kilbucho in the County of Peebles. Order made by the Electricity Commissioners dated 5th December 1946 authorising the Clyde Valley Electrical Power Co. to supply electricity to certain premises in the parish of Beith in the County of Ayr. <i>Local enactments applying within the former supply area of the Coatbridge Corporation.</i>	The whole Act and the whole Order scheduled thereto. The whole Order. The whole Order.
53 & 54 Vict. c. cxcvi.	The Electric Lighting Orders Confirmation (No. 10) Act 1890.	The whole Act so far as relating to the confirmation of the Coatbridge Electric Supply Order 1890 scheduled thereto and the whole of that Order.
5 Edw. 7. c. cxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1905. Deed of transfer of the Coatbridge electricity undertaking granted by the Scottish House to House Electricity Co. Ltd. to the Coatbridge and Airdrie Electric Supply Co. Ltd. in the year 1906.	The whole Act so far as relating to the confirmation of the Coatbridge Electric Lighting Order 1905 scheduled thereto and the whole of that Order. The whole Deed.
4 & 5 Geo. 5. c. cxc.	The Coatbridge Drainage and Burgh Extension Order Confirmation Act 1914.	In the Order scheduled thereto— in section sixty-two the words from "Provided that" onwards.

Session and chapter	Short title	Extent of repeal
14 & 15 Geo. 5. c. xxiii.	The Coatbridge Burgh Extension Order Confirmation Act 1924. Deed of transfer of the Coatbridge electricity undertaking granted by the Coatbridge and Airdrie Electric Supply Co. Ltd. to the Coatbridge Corporation dated 12th November 1934.	In the Order scheduled thereto— in section twelve the words from “Provided that” onwards. The whole Deed.
1 Edw. 8. & 1 Geo. 6. c. lxxxiii.	The Coatbridge Burgh Extension &c. Order Confirmation Act 1937.	In the Order scheduled thereto— in section twenty-eight in subsection (1) the words from “Provided that” onwards; section fifty-three.
11 & 12 Geo. 6. c. iii.	The Coatbridge Burgh Extension &c. Order Confirmation Act 1947. <i>Local enactment applying within the former supply area of the Denny & Dunipace Corporation.</i>	In the Order scheduled thereto— in section twenty-one, in subsection (1) the words from “Provided that” onwards; sections thirty-six and thirty-seven.
5 Edw. 7. c. cxii.	The Electric Lighting Orders Confirmation (No. 4) Act 1905. <i>Local enactments applying within the former supply area of the Dumbarton Corporation.</i>	The whole Act so far as relating to the confirmation of the Denny & Dunipace Electric Lighting Order 1905 scheduled thereto and the whole of that Order.
2 Edw. 7. c. clxxxvi.	The Electric Lighting Orders Confirmation (No. 5) Act 1902.	The whole Act so far as relating to the confirmation of the Dumbarton Electric Lighting Order 1902 scheduled thereto and the whole of that Order.

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Session and chapter	Short title	Extent of repeal
2 Edw. 7. c. ccli.	The Dumbarton Corporation (Further Powers) Order Confirmation Act 1902.	In the Order scheduled thereto— section four so far as relating to borrowing for the purposes of the Dumbarton Electric Lighting Order 1902; section six. Section eight. The Third Schedule.
7 Edw. 7. c. xci.	The Electric Supply Corporation Limited Act 1907.	In the Order scheduled thereto— section forty-seven; the Second Schedule.
4 & 5 Geo. 5. c. cxcii.	The Dumbarton Burgh (Water &c.) Order Confirmation Act 1914.	In the Order (the Dumbarton Burgh Order 1939) scheduled thereto— in section twenty-five the proviso to subsection (1); section forty.
3 & 4 Geo. 6. c. i.	The Dumbarton Burgh Order Confirmation Act 1940.	
	<i>Local enactments applying within the former supply area of the Dumfries Corporation.</i>	
62 & 63 Vict. c. cxix.	The Electric Lighting Orders Confirmation (No. 5) Act 1899.	The whole Act so far as relating to the confirmation of the Dumfries Electric Supply Order 1899 scheduled thereto and the whole of that Order.
3 & 4 Geo. 5. c. cli.	The Electric Lighting Orders Confirmation (No. 3) Act 1913.	The whole Act so far as relating to the confirmation of the Maxwelltown Electric Lighting Order 1913 scheduled thereto and the whole of that Order.
	The Dumfries and Maxwelltown Electricity Special Order 1922.	The whole Order.
19 & 20 Geo. 5. c. xxxi.	The Dumfries and Maxwelltown Burgh Amalgamation Order Confirmation Act 1929.	In the Order scheduled thereto— section thirty-five so far as relating to the electricity undertaking. The whole Order.
	The Dumfries Electricity (Extension) Special Order 1941.	
	<i>Local enactments applying within the former supply area of the Dumfriesshire County Council.</i>	
	The Dumfriesshire (Gretna and Dornock) Electricity Special Order 1929.	The whole Order.

Session and chapter	Short title	Extent of repeal
	The Dumfriesshire Electricity (Extension) Special Order 1931.	The whole Order.
	Order made by the Electricity Commissioners dated 28th November 1934 authorising the Dumfriesshire County Council to supply various premises in the parish of Balmaclellan in the Stewartry.	The whole Order.
	The Dumfriesshire Electricity (Extension) Special Order 1937.	The whole Order.
	<i>Local enactments applying within the former supply area of the Dunbartonshire County Council.</i>	
	The Dunbartonshire Electricity Special Order 1926.	The whole Order.
	The Dunbartonshire Electricity (Extension) Special Order 1939.	The whole Order.
	Order made by the Minister of Transport dated 9th October 1940 fixing the date for the commencement of the Dunbartonshire Electricity (Extension) Special Order 1939 so far as relating to the Parish of Rosneath.	The whole Order.
	<i>Local enactments applying within the former supply area of the Edinburgh Corporation.</i>	
54 & 55 Vict. c. lxiii.	The Electric Lighting Orders Confirmation (No. 6) Act 1891.	The whole Act so far as relating to the confirmation of the Edinburgh Corporation Electric Lighting Order 1891 scheduled thereto (the said Order having been already repealed).
60 & 61 Vict. c. lxiv.	The Electric Lighting Order Confirmation (No. 4) Act 1897.	The whole Act which relates solely to the confirmation of the Leith Corporation Electric Lighting Order 1897 scheduled thereto (the said Order having been already repealed).

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Session and chapter	Short title	Extent of repeal
4 & 5 Geo. 5. c. cxix.	The Electric Lighting Orders Confirmation (No. 6) Act 1914.	The whole Act so far as relating to the confirmation of the Edinburgh Corporation Electric Lighting (Extension) Order 1914 scheduled thereto (the said Order having been already repealed).
	The Edinburgh and Lothians Electricity District Order 1924.	The whole Order and the whole Scheme constituting the Edinburgh and Lothians Electricity District scheduled thereto so far as the said Order and Scheme relate to the former supply area of Edinburgh Corporation.
22 Geo. 5. c. vii.	The Edinburgh Corporation Order Confirmation Act 1932.	In the Order scheduled thereto in section four in the definition of "Public utility undertakings" the words "and the electricity undertaking"; in section one hundred and twenty-five, subsection (3); in section one hundred and sixty-seven the words from "and of the Electricity" to "Order 1914".
24 Geo. 5. c. v.	The Edinburgh Corporation Order Confirmation Act 1933.	In the Order scheduled thereto Part V; the Sixth and Seventh Schedules.
24 & 25 Geo. 5. c. xxx.	The Edinburgh Corporation Order Confirmation Act 1934.	In the Order scheduled thereto section nine so far as it relates to the provision of security for sums of money which may become due for electricity supplied to any person.
	<i>Local enactments applying within the former supply area of the Electric Supply Corporation Ltd.</i>	
2 Edw. 7. c. clxxxvi.	The Electric Lighting Orders Confirmation (No. 5) Act 1902.	The whole Act so far as relating to the confirmation of the St. Andrews Electric Lighting Order 1902 scheduled thereto and the whole of that Order.
	The Electricity (St. Andrews and Hawick) (Transfer) Order 1949 (S.I. 1949 No. 531).	The whole Order so far as relating to the transfer of the St. Andrews electricity undertaking to the South East Scotland Electricity Board.

Session and chapter	Short title	Extent of repeal
	<i>Local enactments applying within the former supply area of the Falkirk Corporation.</i>	
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of the Falkirk Electric Lighting Order 1901 scheduled thereto and the whole of that Order.
19 & 20 Geo. 5. c. xxviii.	The Falkirk Burgh Order Confirmation Act 1929.	In the Orders scheduled thereto section seventy-eight.
24 & 25 Geo. 5. c. lxxxv.	The Falkirk Electricity Order Confirmation Act 1934.	The whole Act and the whole Order scheduled thereto.
	<i>Local enactments applying within the former supply area of the Fife Electric Power Co.</i>	
63 & 64 Vict. c. clxviii.	The Electric Lighting Orders Confirmation (No. 8) Act 1900.	The whole Act so far as relating to the confirmation of the Wormit and Woodhaven Electric Lighting Order 1900 scheduled thereto and the whole of that Order.
3 Edw. 7. c. ccxxi.	The Fife Electric Power Act 1903.	The whole Act.
6 Edw. 7. c. cxxviii.	The Electric Lighting Orders Confirmation (No. 3) Act 1906.	The whole Act so far as relating to the confirmation of the Dunfermline and District Electric Lighting Order 1906 scheduled thereto and the whole of that Order.
9 Edw. 7. c. cix.	The Electric Lighting Order Confirmation (No. 2) Act 1909.	The whole Act and the whole Order (the Dunfermline and District Electric Lighting (Amendment) Order 1909) scheduled thereto.
	Deed of transfer of the Dunfermline electricity undertaking granted by the Dunfermline Corporation to the Fife Electric Power Co. dated 5th November 1910.	The whole Deed.

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Session and chapter	Short title	Extent of repeal
10 Edw. 7. & 1 Geo. 5. c. lxxvi.	The Electric Lighting Orders Confirmation (No. 2) Act 1910. Deed of transfer of the Cowdenbeath Lochgelly and District electricity undertaking granted by George Balfour to the Fife Tramway Light and Power Co. Ltd. dated 27th July 1911.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of the Cowdenbeath Lochgelly and District Electric Lighting Order 1910 scheduled thereto and the whole of that Order. The whole Deed.
1 & 2 Geo. 5. c. clxii.	The Electric Lighting Orders Confirmation (No. 3) Act 1911. The Fife Electricity (Extension &c.) Special Order 1926. The Fife Electricity Special Order 1929. Deed of transfer of the Cowdenbeath Lochgelly and District electricity undertaking granted by the Fife Tramway Light and Power Co. Ltd. to the Fife Electric Power Co. dated 17th February 1930.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of the Fife Electric Lighting Order 1911 scheduled thereto and the whole of that Order. The whole Order. The whole Order. The whole Deed.
20 & 21 Geo. 5. c. cxxiv.	The Fife Electric Power Act 1930. <i>Local enactment applying within the former supply area of the Galloway Water Power Co.</i>	The whole Act.
19 & 20 Geo. 5. c. lxxx.	The Galloway Water Power Act 1929.	The whole Act.

Session and chapter	Short title	Extent of repeal
53 & 54 Vict. c. cxcix.	<i>Local enactments applying within the former supply area of the Glasgow Corporation.</i> The Electric Lighting Orders Confirmation (No. 14) Act 1890.	The whole Act so far as relating to the confirmation of— 1. The Glasgow Corporation Electric Lighting Order 1890; and 2. The Kelvinside Electric Lighting Order 1890; scheduled thereto and the whole of those two Orders.
55 & 56 Vict. c. xxxvi.	The Electric Lighting Order Confirmation (No. 1) Act 1892.	The whole Act (the Govan Electric Lighting Order 1892 scheduled thereto having been already repealed).
56 & 57 Vict. c. cvi.	The Electric Lighting Order Confirmation (No. 1) Act 1893.	The whole Act (the Partick Electric Lighting Order 1893 scheduled thereto having been already repealed).
62 & 63 Vict. c. clxii.	The Glasgow Corporation (Gas and Water) Act 1899.	Section twenty-five so far as it relates to the charging and recovery of rates and charges for electrical energy. Section twenty-six so far as it relates to the laying taking up alteration relaying and renewal of pipes cables service lines and other works requisite or proper for the furnishing of a supply of electrical energy. Section twenty-seven so far as it relates to consumers of electrical energy. Section twenty-eight so far as it relates to persons who have not paid for electrical energy supplied to them. Section twenty-nine so far as it relates to prepayment of the price of electrical energy. Section thirty so far as it relates to notices for the discontinuance of a supply of electrical energy. Sections thirty-three and thirty-four. The Third Schedule.
2 Edw. 7. c. clxxxv.	The Glasgow Corporation (Gas &c.) Order Confirmation Act 1902.	In the Order scheduled thereto section nineteen.

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Session and chapter	Short title	Extent of repeal
2 Edw. 7. c. clxxxvi.	The Electric Lighting Orders Confirmation (No. 5) Act 1902.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of— 1. The Glasgow (Kinning Park) Electric Lighting Order 1902; and 2. The Govan Electric Lighting (Extension) Order 1902; scheduled thereto and the whole of those two Orders so far as unrepealed.
5 Edw. 7. c. cxii.	The Electric Lighting Orders Confirmation (No. 4) Act 1905.	The whole Act so far as relating to the confirmation of the Burgh of Pollokshaws Electric Supply Order 1905 scheduled thereto and the whole of that Order.
7 Edw. 7. c. cxlvi.	The Glasgow Corporation Act 1907.	Sections thirty-nine and forty.
2 & 3 Geo. 5. c. xcv.	The Glasgow Boundaries Act 1912.	Section twenty-three. In section thirty-four subsection (3). Sections sixty-eight and sixty-nine. The Third Schedule.
15 & 16 Geo. 5. c. cxxxi.	The Glasgow Boundaries Act 1925.	Section fourteen. Sections fifty-three and fifty-four.
20 & 21 Geo. 5. c. clxxvii.	The Glasgow Corporation Act 1930.	Section forty.
24 & 25 Geo. 5. c. lxix.	The Glasgow Corporation Order Confirmation Act 1934.	In the Order scheduled thereto Part VI; the schedule.
1 & 2 Geo. 6. c. vi.	The Glasgow Boundaries Order Confirmation Act 1937.	In the Order scheduled thereto section twenty-three; sections forty-nine and fifty.
	<i>Local enactments applying within the former supply area of the Greenock Corporation.</i>	
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of the Gourock Electric Supply Order 1901 scheduled thereto and the whole of that Order.
1 Edw. 7. c. cclxxix.	The Greenock Corporation Order Confirmation Act 1901.	The whole Act and the whole Order scheduled thereto so far as unrepealed.

Session and chapter	Short title	Extent of repeal
9 Edw. 7. c. cxxix.	The Greenock Corporation Act 1909.	Section one hundred and forty-six. Part XVII. The Fifth and Sixth Schedules. In the Eleventh Schedule in Part II the reprint of section eighty-four of the Greenock Corporation Order 1901.
3 & 4 Geo. 5. c. cli.	The Electric Lighting Orders Confirmation (No. 3) Act 1913. Deed of transfer of the Port Glasgow electricity undertaking granted by the Port Glasgow Corporation to the Greenock Corporation dated 29th December 1913 and 7th January 1914. The Gourock Electricity Special Order 1923. Deed of transfer of the Gourock electricity undertaking granted by the Gourock Corporation to the Greenock Corporation dated 31st July and 2nd August 1923.	The whole Act so far as relating to the confirmation of the Port Glasgow Electric Lighting Order 1913 scheduled thereto and the whole of that Order. The whole Deed. The whole Order. The whole Deed.
13 & 14 Geo. 5. c. lxxix.	The Greenock Corporation (Electricity) Act 1923. The Greenock Electricity (Extension) Special Order 1925.	The whole Act. The whole Order.
16 & 17 Geo. 5. c. lxxvii.	The Greenock Corporation Order Confirmation Act 1926.	In the Order scheduled thereto section ten.
17 & 18 Geo. 5. c. lxxvi.	The Greenock Burgh Extension &c. Act 1927.	Part VI.
24 & 25 Geo. 5. c. iii.	The Greenock Corporation Order Confirmation Act 1933.	In the Order scheduled thereto in section thirty in subsection (1) subparagraph (i) of paragraph (c) and subsection (3); section thirty-one.
1 Edw. 8. & 1 Geo. 6. c. iii.	The Greenock Burgh Extension &c. Order Confirmation Act 1937.	In the Order scheduled thereto Part V.

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Session and chapter	Short title	Extent of repeal
	<i>Local enactments applying within the former supply area of the Hamilton Corporation.</i>	
61 & 62 Vict. c. xxxvii.	The Electric Lighting Orders Confirmation (No. 1) Act 1898.	The whole Act so far as relating to the confirmation of the Hamilton Electric Lighting Order 1898 scheduled thereto and the whole of that Order.
9 Edw. 7. c. cliv.	The Hamilton Burgh Order Confirmation Act 1909.	In the Order scheduled thereto in section one the words from "and the Hamilton Electric" onwards; in section three the definition of the Order of 1898; sections four to eight; section twenty-six so far as relating to the supply of electricity.
15 & 16 Geo. 5. c. xiv.	The Hamilton Burgh Order Confirmation Act 1925.	In the Order scheduled thereto in section ten the proviso.
	The Hamilton Electricity (Extension) Special Order 1930.	The whole Order.
1 & 2 Geo. 6. c. ii.	The Hamilton Burgh Order Confirmation Act 1937.	In the Order scheduled thereto in section nine the words from "Provided that" to "Order 1934"; section twenty-four.
	<i>Local enactment applying within the former supply area of the Helensburgh Corporation.</i>	
	The Helensburgh Electricity Special Order 1925.	The whole Order.
	<i>Local enactments applying within the former supply area of the Kirkcaldy Corporation.</i>	
62 & 63 Vict. c. cxxxviii.	The Electric Lighting Orders Confirmation (No. 13) Act 1899.	The whole Act so far as relating to the confirmation of the Kirkcaldy Electric Lighting Order 1899 scheduled thereto (the said Order having been already repealed).

Session and chapter	Short title	Extent of repeal
2 & 3 Geo. 6. c. vi.	The Kirkcaldy Corporation Order Confirmation Act 1939.	In the Order scheduled thereto Part IV; in section one hundred and ninety-eight in the defini- tion of "Public utility undertakings" the words "the electricity under- taking"; in section two hundred and two the words from "Provided always" on- wards; section two hundred and three; in section two hundred and five in subsection (4) in paragraph (b) the words from "subject in" to "Electricity Commis- sioners"; section two hundred and thirteen; in section two hundred and seventeen subsection (3); in section two hundred and fifty-three the word "electricity"; in section two hundred and fifty-four the words "or electricity"; section two hundred and fifty-five so far as it relates to the provision of security for sums of money which may become due for electricity supplied to any person; in section two hundred and fifty-six the word "elec- tricity"; section two hundred and eighty-three; the Fifth Schedule; in the Eighth Schedule the words "12. Electricity".
	<i>Local enactments applying within the former supply area of the Kirkcudbright County Council.</i>	
	The Kirkcudbright and Dis- trict Electricity Special Order 1932.	The whole Order.
	The Kirkcudbright and Dis- trict Electricity (Extension) Special Order 1933.	The whole Order.

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Session and chapter	Short title	Extent of repeal
	<i>Local enactments applying within the former supply area of the Lanarkshire County Council.</i>	
3 Edw. 7. c. xlviii.	The Electric Lighting Orders Confirmation (No. 4) Act 1903.	The whole Act so far as relating to the confirmation of the Cambuslang Electric Lighting Order 1903 scheduled thereto (the said Order having been already repealed).
3 Edw. 7. c. lxx.	The Lanarkshire Electricity and Refuse Destruction Order Confirmation Act 1903.	The whole Act and the whole Order scheduled thereto.
6 Edw. 7. c. cxxviii.	The Electric Lighting Orders Confirmation (No. 3) Act 1906.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of— 1. The Bellshill Electric Lighting Order 1906; 2. The Blantyre Electric Lighting Order 1906; 3. The Bothwell Electric Lighting Order 1906; 4. The Shettleston and Tollcross Electric Lighting Order 1906; and 5. The Uddingston Electric Lighting Order 1906; scheduled thereto and the whole of those five Orders so far as unrepealed.
10 Edw. 7. & 1 Geo. 5. c. lxxvi.	The Electric Lighting Orders Confirmation (No. 2) Act 1910.	Section four. The whole of the remainder of the Act so far as relating to the confirmation and costs of the Cambuslang Electric Lighting (Extension) Order 1910 scheduled thereto (the said Order having been already repealed).
	The Lanarkshire (Western Area) Electricity Special Order 1923.	The whole Order.

Session and chapter	Short title	Extent of repeal	2ND SCH. —cont.
2 & 3 Geo. 6. c. xcii.	The Lanarkshire County Council Order Confirmation Act 1939. Order made by the Electricity Commissioners dated 29th November 1943 authorising the Lanarkshire County Council to supply electricity to Kippet Farm near Dolphinton in the County of Peebles. <i>Local enactment formerly applying to the Lanarkshire Hydro-Electric Power Co.</i>	In the Order scheduled thereto in section three the words from "Part IV" to "of electricity"; Part IV; in section two hundred and ninety-four the words "not being electricity reserve funds and"; in section two hundred and ninety-five in paragraph (vi) of subsection (1) the words "or the electricity undertaking"; in section two hundred and ninety-six in subsection (3) the words from "Provided that" onwards and paragraph (b) of subsection (4); the Third Fourth Fifth Sixth and Seventh Schedules. The whole Order.	
14 & 15 Geo. 5. c. xciii.	The Lanarkshire Hydro-Electric Power Act 1924. <i>Local enactments applying within the former supply area of the Lothians Electric Power Co.</i>	The whole Act.	
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of the Dalkeith Electric Lighting Order 1901 scheduled thereto and the whole of that Order.	
4 Edw. 7. c. ccvii.	The Lothians Electric Power Act 1904.	The whole Act.	

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Session and chapter	Short title	Extent of repeal
7 Edw. 7. c. xci.	The Electric Supply Corporation Limited Act 1907.	The whole Act so far as relating to the transfer to the Electric Supply Corporation Ltd. of the Dalkeith Electric Lighting Order 1901.
	The Edinburgh and Lothians Electricity District Order 1924.	The whole Order and the whole Scheme constituting the Edinburgh and Lothians Electricity District scheduled thereto so far as the said Order and Scheme relate to the former supply area of the Lothians Electric Power Co.
	The Lothians Electricity Special Order 1924.	The whole Order.
	Deed of transfer of the Dalkeith electricity undertaking granted by the Electric Supply Corporation Ltd. to the Dalkeith Corporation dated 29th and 31st March 1926.	The whole Deed.
	The Lothians Electricity (Extension) Special Order 1928.	The whole Order.
	Deed of transfer of the Dalkeith electricity undertaking granted by the Dalkeith Corporation to the Lothians Electric Power Co. dated 8th and 11th July 1929.	The whole Deed.
	<i>Local enactments applying within the former supply area of the Motherwell and Wishaw Corporation.</i>	
58 & 59 Vict. c. lxvi.	The Electric Lighting Orders Confirmation (No. 1) Act 1895.	The whole Act so far as relating to the confirmation of the Motherwell Electric Lighting Order 1895 scheduled thereto and the whole of that Order.
4 Edw. 7. c. cxxxi.	The Electric Lighting Orders Confirmation (No. 5) Act 1904.	The whole Act so far as relating to the confirmation of the Wishaw Electric Lighting Order 1904 scheduled thereto and the whole of that Order.
8 Edw. 7. c. lix.	The Motherwell Burgh Extension and Sewage Purification Act 1908.	Part IV. Sections fifty-four and fifty-five.

Session and chapter	Short title	Extent of repeal
8 Edw. 7. c. lxxiv.	The Wishaw Burgh Electricity &c. Act 1908.	The whole Act except sections one and six.
10 & 11 Geo. 5. c. xli.	The Motherwell and Wishaw Burgh Order Confirmation Act 1920.	In the Order scheduled thereto section thirty-three; section fifty-five.
1 Edw. 8. & 1 Geo. 6. c. lxxxii.	The Motherwell and Wishaw Burgh Order Confirmation Act 1937.	In the Order scheduled thereto in section twenty-four the proviso to subsection (1); in section thirty-five subsection (2).
2 & 3 Geo. 6. c. xciii.	The Motherwell and Wishaw Electricity &c. Order Confirmation Act 1939.	In the Order scheduled thereto in section one the words from "and the Motherwell" onwards; in section three the definitions of "Order of 1895" "The Schedule of 1899" "Area of Supply" and "Added area"; sections four to six; section ten; the schedule.
	<i>Local enactments applying within the former supply area of the Musselburgh and District Electric Light and Traction Co. Ltd.</i>	
62 & 63 Vict. c. cxxxviii.	The Electric Lighting Orders Confirmation (No. 13) Act 1899.	The whole Act so far as relating to the confirmation of the Musselburgh Electric Lighting Order 1899 scheduled thereto (the said Order having been already repealed).
4 Edw. 7. c. cxxxi.	The Electric Lighting Orders Confirmation (No. 5) Act 1904.	The whole Act so far as relating to the confirmation of the Musselburgh Electric Lighting Order 1904 scheduled thereto and the whole of that Order.
	Deed of transfer of the Musselburgh electricity undertaking granted by the National Electric Construction Co. Ltd. to the Musselburgh and District Electric Light and Traction Co. Ltd. dated 19th July 1905.	The whole Deed.

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Session and chapter	Short title	Extent of repeal
6 Edw. 7. c. cxxviii.	The Electric Lighting Orders Confirmation (No. 3) Act 1906. Deed of transfer of the Inveresk electricity undertaking granted by the National Electric Construction Co. Ltd. to the Musselburgh and District Electric Light and Traction Co. Ltd. dated 31st December 1906. <i>Local enactments applying within the former supply area of the North Berwick Corporation.</i>	The whole Act so far as relating to the confirmation of the Inveresk Electric Lighting Order 1906 scheduled thereto and the whole of that Order. The whole Deed.
	The North Berwick Electricity Special Order 1925. Order made by the Electricity Commissioners dated 9th March 1926 authorising the North Berwick and District Electric Light and Power Co. Ltd. to supply electricity to certain premises in the parishes of Dirleton and North Berwick in the County of East Lothian.	The whole Order. The whole Order.
	Deed of transfer of the North Berwick electricity undertaking granted by the North Berwick and District Electric Light and Power Co. Ltd. to the North Berwick Corporation dated 31st March 1926.	The whole Deed.
16 & 17 Geo. 5. c. xli.	The North Berwick Burgh Extension Order Confirmation Act 1926. Order made by the Electricity Commissioners dated 7th March 1939 authorising the North Berwick Corporation to supply electricity to certain premises in the parishes of Dirleton and North Berwick in the County of East Lothian.	In the Order scheduled thereto section eleven. The whole Order.

Session and chapter	Short title	Extent of repeal
	<i>Local enactments applying within the former supply area of the Paisley Corporation.</i>	
54 & 55 Vict. c. lxiii.	The Electric Lighting Orders Confirmation (No. 6) Act 1891.	The whole Act so far as relating to the confirmation of the Paisley Electric Lighting Order 1891 scheduled thereto and the whole of that Order.
1 & 2 Geo. 6. c. vii.	The Paisley Corporation (General Powers) Order Confirmation Act 1938.	In the Order scheduled thereto in section four the words "the electricity undertaking"; in section twelve the words from "Provided always" to "given effect to"; in section thirteen in paragraph (b) of subsection (4) the words from "subject in the case of" to "Electricity Commissioners"; section fourteen.
10 Geo. 6. c. xxxvii.	The Paisley Corporation Order Confirmation Act 1947.	In the Order scheduled thereto in section ninety-eight in subsection (1) the words from "and the Electricity" to "Order 1938".
	<i>Local enactments applying within the former supply area of the Scottish Central Electric Power Co.</i>	
62 & 63 Vict. c. cxix.	The Electric Lighting Orders Confirmation (No. 5) Act 1899.	The whole Act so far as relating to the confirmation of the Alloa Electric Lighting Order 1899 scheduled thereto and the whole of that Order.
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of the Dollar Electric Lighting Order 1901 scheduled thereto and the whole of that Order.
3 Edw. 7. c. ccxli.	The Scottish Central Electric Power Act 1903.	The whole Act.
5 Edw. 7. c. cxii.	The Electric Lighting Orders Confirmation (No. 4) Act 1905.	The whole Act so far as relating to the confirmation of the Grangemouth Electric Lighting Order 1905 scheduled thereto and the whole of that Order.

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Session and chapter	Short title	Extent of repeal
7 Edw. 7. c. xci.	The Electric Supply Corporation Limited Act 1907.	The whole Act so far as relating to the transfer of the Dollar electricity undertaking to the Electric Supply Corporation Ltd.
1 & 2 Geo. 5. c. clxii.	The Electric Lighting Orders Confirmation (No. 3) Act 1911.	The whole Act so far as relating to the confirmation of— 1. The Alloa Electric Lighting (Extension) Order 1911; and 2. The Grangemouth Electric Lighting (Amendment) Order 1911; scheduled thereto and the whole of those two Orders.
	Deed of transfer of the Grangemouth electricity undertaking granted by the Grangemouth Corporation to the Scottish Central Electric Power Co. dated 14th October 1912.	The whole Deed.
	Deed of transfer of the Alloa electricity undertaking granted by the Alloa Corporation to the Scottish Central Electric Power Co. dated 27th June and 5th July 1927.	The whole Deed.
	Deed of transfer of the Dollar electricity undertaking granted by the Electric Supply Corporation Ltd. to the Scottish Central Electric Power Co. dated 31st January 1929.	The whole Deed.
20 & 21 Geo. 5. c. lxx.	The Scottish Central Electric Power Act 1930.	The whole Act.
	<i>Local enactments applying within the former supply area of the Scottish Midlands Electricity Supply Ltd.</i>	
2 & 3 Geo. 5. c. clv.	The Electric Lighting Order Confirmation (No. 4) Act 1912.	The whole of the Act and the whole of the Linlithgow and Falkirk District Electric Lighting Order 1912 scheduled thereto.

Session and chapter	Short title	Extent of repeal
	Deed of transfer of the Linlithgow and Falkirk District electricity undertaking granted by George Balfour to the Scottish Midlands Electricity Supply Ltd. dated 9th September 1913.	The whole Deed.
	The Bridge of Allan Electricity Special Order 1925.	The whole Order.
	The Linlithgow and Falkirk District Electricity (Extension &c.) Special Order 1926.	The whole Order.
	The Bridge of Allan Electricity Special Order 1927.	The whole Order.
	The Linlithgow and Falkirk District Electricity (Extension) Special Order 1928.	The whole Order.
	Order made by the Electricity Commissioners authorising the Scottish Midlands Electricity Supply Ltd. to supply electricity to certain premises at Condorrat in the County of Dunbarton dated 4th February 1937.	The whole Order.
	Order made by the Electricity Commissioners authorising the Scottish Midlands Electricity Supply Ltd. to supply electricity to certain premises at Condorrat in the County of Dunbarton dated 27th May 1943.	The whole Order.
	<i>Local enactments applying within the former supply area of the Scottish Southern Electric Supply Co. Ltd.</i>	
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of— 1. The Galashiels Electric Lighting Order 1901; 2. The Jedburgh Electric Lighting Order 1901; and 3. The Melrose Electric Lighting Order 1901; scheduled thereto and the whole of those three Orders.

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Session and chapter	Short title	Extent of repeal
7 Edw. 7. c. xci.	The Electric Supply Corporation Limited Act 1907.	The whole Act so far as relating to the transfer to the Electric Supply Corporation Ltd. of— 1. The Jedburgh Electric Lighting Order 1901; and 2. The Melrose Electric Lighting Order 1901.
4 & 5 Geo. 5. c. cxix.	The Electric Lighting Orders Confirmation (No. 6) Act 1914.	Sections four and five. The whole of the remainder of the Act so far as relating to the confirmation of the Galashiels and District Electric Lighting Order 1914 scheduled thereto and the whole of that Order.
	The Galashiels and District Electricity (Extension) Special Order 1926.	The whole Order.
	Deed of transfer of the Melrose electricity undertaking granted by the Electric Supply Corporation Ltd. to the Galashiels and District Electric Supply Co. Ltd. dated 8th November 1927.	The whole Deed.
	Deed of transfer of the Jedburgh electricity undertaking granted by the Electric Supply Corporation Ltd. to the Scottish Southern Electric Supply Co. Ltd. dated 27th December 1928.	The whole Deed.
	The Scottish Border Electricity Special Order 1934.	The whole Order.
	<i>Local enactments applying within the former supply area of the Skelmorlie Electric Supply Co. Ltd.</i>	
10 Edw. 7. & 1 Geo. 5. c. lxxvi.	The Electric Lighting Orders Confirmation (No. 2) Act 1910.	The whole Act so far as relating to the confirmation of the Skelmorlie Electric Supply Order 1910 scheduled thereto and the whole of that Order.
	Deed of transfer of the Skelmorlie electricity undertaking granted by the Skelmorlie Electrical Supply Company to the Skelmorlie Electric Supply Co. Ltd. in the year 1911.	The whole Deed.

Session and chapter	Short title	Extent of repeal
	The Skelmorlie Electricity (Extension) Special Order 1932. <i>Local enactment formerly applying to the South East Scotland and South West Scotland Electricity Boards.</i>	The whole Order.
	The Electricity (Transmission Lines, Scotland) (Transfer) Order 1952. (S.I. 1952 No. 596). <i>Local enactments applying within the former supply area of the Stirling Corporation.</i>	The whole Order.
58 & 59 Vict. c. lxvi.	The Electric Lighting Orders Confirmation (No. 1) Act 1895.	The whole Act so far as relating to the confirmation of the Stirling Electric Lighting Order 1895 scheduled thereto and the whole of that Order.
1 Edw. 7. c. clxxxv.	The Stirling Corporation Order Confirmation Act 1901. Order made by the Board of Trade dated 15th August 1912 authorising the Stirling Corporation to supply electricity to certain premises in the parish of St. Ninians in the County of Stirling. Order made by the Board of Trade dated 11th August 1913 authorising the Stirling Corporation to supply electricity to certain premises in the parish of St. Ninians in the County of Stirling. Order made by the Board of Trade dated 2nd July 1919 authorising the Stirling Corporation to supply electricity to certain premises in the parish of St. Ninians in the County of Stirling. Order made by the Electricity Commissioners dated 31st March 1920 authorising the Stirling Corporation to supply electricity to "Llewellyn Lodge" Murrayshall Road in the County of Stirling.	In the Order scheduled thereto section twenty-three. The whole Order. The whole Order. The whole Order. The whole Order.

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Session and chapter	Short title	Extent of repeal
	Order made by the Electricity Commissioners dated 19th October 1923 authorising the Stirling Corporation to supply electricity to "Duntarvie" Birkhall Road in the County of Stirling.	The whole Order.
	Order made by the Electricity Commissioners dated 11th August 1932 authorising the Stirling Corporation to supply electricity to premises at Dalmorglen Park in the County of Stirling.	The whole Order.
2 & 3 Geo. 6. c. lxx.	The Stirling Burgh Order Confirmation Act 1939.	In the Order scheduled thereto in section five in subsection (1), in the definition of "Public utility undertakings" the words "the electricity undertaking". in section thirty-three the proviso to subsection (1). section forty-three. in section one hundred and fifty-eight, in subsection (1) in paragraph (b) the words from "subject in" to "Electricity Commissioners". in section one hundred and fifty-nine in subsection (4) paragraph (b). section one hundred and sixty. in section one hundred and sixty-two the words "and the electricity rates and charges".
	<i>Local enactments applying within the former supply area of the Strathclyde Electricity Supply Co. Ltd.</i>	
1 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 8) Act 1901.	The whole Act so far as relating to the confirmation of the Clydebank Electric Lighting Order 1901 scheduled thereto and the whole of that Order.

Session and chapter	Short title	Extent of repeal
3 Edw. 7. c. xlviii.	The Electric Lighting Orders Confirmation (No. 4) Act 1903.	The whole Act so far as relating to the confirmation of— 1. The Kilmacolm Electric Lighting Order 1903; and 2. The Kirkintilloch Electric Lighting Order 1903; scheduled thereto and the whole of those two Orders.
5 Edw. 7. c. cxii.	The Electric Lighting Orders Confirmation (No. 4) Act 1905.	The whole Act so far as relating to the confirmation of— 1. The Renfrew Burgh Electric Lighting Order 1905; and 2. The Rutherglen Electric Supply Order 1905; scheduled thereto and the whole of those two Orders.
6 Edw. 7. c. cxi.	The Electric Lighting Orders Confirmation (No. 6) Act 1906.	The whole Act and the whole of— 1. The Eastwood and Cathcart Electric Lighting Order 1906; and 2. The Kilpatrick Electric Lighting Order 1906; scheduled thereto.
8 Edw. 7. c. cxvi.	The Electric Lighting Orders Confirmation (No. 2) Act 1908.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of— 1. The Barrhead Electric Lighting Order 1908; 2. The Clydebank Electric Lighting (Amendment) Order 1908; and 3. The Rutherglen Electric Supply (Amendment) Order 1908; scheduled thereto and the whole of those three Orders.
	Deed of transfer of the Clydebank electricity undertaking granted by the Clyde Valley Electrical Power Co. to the Strathclyde Electricity Supply Co. Ltd. in the year 1908.	The whole Deed.
	Deed of transfer of the Rutherglen electricity undertaking granted by the Rutherglen Corporation to the Strathclyde Electricity Supply Co. Ltd. dated 14th June 1909.	The whole Deed.

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Session and chapter	Short title	Extent of repeal
	The Renfrew and District Electricity Special Order 1922.	The whole Order.
	The Johnstone Electricity Special Order 1922.	The whole Order.
	The Kilpatrick Electricity (Extension to Milngavie and District) Special Order 1922.	The whole Order.
	The Kirkintilloch and District Electricity Special Order 1922.	The whole Order.
	The Eastwood and Cathcart Electricity (Extension) Special Order 1923.	The whole Order.
	The Busby Mearns and District Electricity Special Order 1924.	The whole Order.
	The Renfrewshire (Western Area) Electricity Special Order 1925.	The whole Order.
	Order made by the Electricity Commissioners dated 12th December 1944 authorising the Strathclyde Electricity Supply Co. Ltd. to supply electricity to Burdiehouse Farm Beith in the County of Ayr.	The whole Order.
	Order made by the Electricity Commissioners dated 4th March 1948 authorising the Strathclyde Electricity Supply Co. Ltd. to supply electricity to 53 houses on Boglestone Housing Estate Port Glasgow.	The whole Order.
	<i>Local enactments applying within the former supply area of the Urban Electric Supply Co. Ltd.</i>	
62 & 63 Vict. c. cxxxviii.	The Electric Lighting Orders Confirmation (No. 13) Act 1899.	The whole Act so far as relating to the confirmation of the Hawick Electric Lighting Order 1899 scheduled thereto and the whole of that Order.
	The Electricity (St. Andrews and Hawick) (Transfer) Order 1949. (S.I. 1949 No. 531).	The whole Order so far as relating to the transfer of the Hawick electricity undertaking to the South East Scotland Electricity Board.

Session and chapter	Short title	Extent of repeal
	<i>Local enactment applying within the former supply area of the West Lothian County Council.</i>	
5 Edw. 7. c. cxii.	The Electric Lighting Orders Confirmation (No. 4) Act 1905.	Section three. The whole of the remainder of the Act so far as relating to the confirmation of the Uphall Electric Lighting Order 1905 scheduled thereto and the whole of that Order.
	<i>Local enactments applying within the former supply area of the Wigtownshire Electricity Co. Ltd.</i>	
4 Edw. 7. c. cxxxi.	The Electric Lighting Orders Confirmation (No. 5) Act 1904.	The whole Act so far as relating to the confirmation of the Portpatrick Electric Lighting Order 1904 scheduled thereto and the whole of that Order.
	The Wigtownshire Electricity Special Order 1931.	The whole Order.
	Deed of transfer of the Wigtownshire electricity undertaking granted by the Holderness Trust Ltd. to the Wigtownshire Electricity Co. Ltd. dated 17th July 1931.	The whole Deed.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 19.
Gasworks Clauses Act 1871	34 & 35 Vict. c. 41.
Electric Lighting Act 1882...	45 & 46 Vict. c. 56.
Interpretation Act 1889	52 & 53 Vict. c. 63.
Electric Lighting (Clauses) Act 1899	62 & 63 Vict. c. 19.
Electric Lighting Act 1909...	9 Edw. 7. c. 34.
Greenock Port and Harbours Consolidation Act 1913	3 & 4 Geo. 5. c. xlii.
Electricity (Supply) Act 1922	12 & 13 Geo. 5. c. 46.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5. & 1 Edw. 8. c. 52.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6. c. 53.
Electricity Act 1947	10 & 11 Geo. 6. c. 54.
Public Utilities Street Works Act 1950	14 Geo. 6. c. 39.
Rights of Entry (Gas and Electricity Boards) Act 1954	2 & 3 Eliz. 2. c. 21.
Electricity Reorganisation (Scotland) Act 1954...	2 & 3 Eliz. 2. c. 60.

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